

{Variable} input · [Computable] act / derived · «if ... end if» condition · struck excluded · word-for-word dissection; the law is reconstructable from the substrate

§107 · Obstruction of an election

ObstructionOfElection · provenance StGB 107 · (1) encoded; (2) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Any person who, with violence or by threat of violence, prevents or disrupts an election or the determination of its result shall be punished with imprisonment for up to five years or a fine, in particularly serious cases with imprisonment for a term of not less than one year. (2) An attempt is punishable.

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if ObstructionOfElection is true»(1) {Actor} who, «if {UsesViolence} is true»with violence «end if» «if {ThreatensViolence} is true»or by threat of violence «end if», «if {Prevents} is true»prevents «end if» «if {Disrupts} is true»or disrupts «end if» «if {Election} is true»an election «end if» «if {DeterminationOfResult} is true»or the determination of its result «end if» shall be punished with imprisonment for up to five years or a fine, in particularly serious cases with imprisonment for a term of not less than one year. (2) An attempt is punishable.«end if»

ANNEXES

COMPUTABLES

[Means] = UsesViolence is true or ThreatensViolence is true

[Conduct] = Prevents is true or Disrupts is true

[Object] = Election is true or DeterminationOfResult is true

[ObstructionOfElection] = Means is true and Conduct is true and Object is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
OEL-R01	ACT	Actor		UsesViolence is true
OEL-R02	ACT	Actor		ThreatensViolence is true
OEL-R03	ACT	Actor		Prevents is true
OEL-R04	ACT	Actor		Disrupts is true
OEL-R05	CONDITION	None		Election is true
OEL-R06	CONDITION	None		DeterminationOfResult is true
OEL-P0	PROHIBITION	Actor	not realise	not ObstructionOfElection

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} uses violence	Merkmal	{UsesViolence}	OEL-R01	is true
{Actor} threatens violence	Merkmal	{ThreatensViolence}	OEL-R02	is true
{Actor} prevents the process	Merkmal	{Prevents}	OEL-R03	is true
{Actor} disrupts the process	Merkmal	{Disrupts}	OEL-R04	is true
an election	Merkmal	{Election}	OEL-R05	is true
the determination of the election result	Merkmal	{DeterminationOfResult}	OEL-R06	is true
serious-cases clause; (2) attempt	grading / attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{DeterminationOfResult}	Boolean	true / false / unknown	Session	the determination of the election result
{Disrupts}	Boolean	true / false / unknown	Session	{Actor} disrupts the process
{Election}	Boolean	true / false / unknown	Session	an election
{Prevents}	Boolean	true / false / unknown	Session	{Actor} prevents the process
{ThreatensViolence}	Boolean	true / false / unknown	Session	{Actor} threatens violence
{UsesViolence}	Boolean	true / false / unknown	Session	{Actor} uses violence

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} uses violence or {Actor} threatens violence) and ({Actor} prevents the process or {Actor} disrupts the process) and (an election or the determination of the election result).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Means]	UsesViolence, ThreatensViolence	false	Recomputes when any input changes; propagates into the composite.
[Conduct]	Prevents, Disrupts	false	Recomputes when any input changes; propagates into the composite.
[Object]	Election, DeterminationOfResult	false	Recomputes when any input changes; propagates into the composite.
[ObstructionOfElection]	Means, Conduct, Object	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (OEL-P0)	[ObstructionOfElection]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Actor}

{DeterminationOfResult}

{Disrupts}

{Election}

{Prevents}

{ThreatensViolence}

{UsesViolence}

↓

PHASE 2: evaluate act / intermediate computables

[Means] = UsesViolence is true or ThreatensViolence is true

[Conduct] = Prevents is true or Disrupts is true

[Object] = Election is true or DeterminationOfResult is true

↓

PHASE 3: evaluate the objective conditions

[ObstructionOfElection] = Means is true and Conduct is true and Object is true

↓

VERDICT (PrimeRule)

[ObstructionOfElection] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[ObstructionOfElection] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [ObstructionOfElection] depends on [Means], [Conduct], [Object]; none refer back to [ObstructionOfElection]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{DeterminationOfResult}	Element/Datum: the determination of the election result.?	Boolean
Q3	Session	{Disrupts}	Element/Datum: {Actor} disrupts the process.?	Boolean
Q4	Session	{Election}	Element/Datum: an election.?	Boolean
Q5	Session	{Prevents}	Element/Datum: {Actor} prevents the process.?	Boolean
Q6	Session	{ThreatensViolence}	Element/Datum: {Actor} threatens violence.?	Boolean
Q7	Session	{UsesViolence}	Element/Datum: {Actor} uses violence.?	Boolean

FLAGS

SCOPE Paragraph 1 whole: the two means over the two conducts and the two objects. Struck per the marked-up source: the penalty with its serious-cases clause, and (2).

§108D SCOPE PROVISION Which elections and votes fall within the chapter is governed by §108d, Excluded in the Treatment column; {Election} therefore carries its general meaning and the §108d extension resolves as an input.

TREATMENT §107 is Operomise-tagged.

§107a · Electoral fraud

ElectoralFraud · provenance StGB 107a · (1)-(2) encoded with the assisted-voting extension; (3) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who votes without authorisation, or otherwise brings about an incorrect result of an election, or falsifies the result, shall be punished with imprisonment for up to five years or a fine. A person also votes without authorisation who, within the scope of permissible assistance, casts a vote contrary to the voting decision of the person entitled to vote or without an expressed voting decision of the person entitled to vote. (2) The same penalty shall apply to anyone who incorrectly announces, or causes to be incorrectly announced, the result of an election. (3) An attempt is punishable.	«if ElectoralFraud is true»(1) {Actor} who «if {VotesWithoutAuthorisation} is true»votes without authorisation «end if», or «if {BringsAboutIncorrectResult} is true»otherwise brings about an incorrect result of an election «end if», or «if {FalsifiesResult} is true»falsifies the result «end if» shall be punished with imprisonment for up to five years or a fine. A person also votes without authorisation who, within the scope of permissible assistance, «if {AssistedVoteAgainstDecision} is true»casts a vote contrary to the voting decision of the person entitled to vote «end if» «if {AssistedVoteWithoutDecision} is true»or without an expressed voting decision of the person entitled to vote «end if». (2) The same penalty shall apply to {Actor} who «if {AnnouncesIncorrectResult} is true»incorrectly announces «end if» «if

{CausesIncorrectAnnouncement} is true»or causes to be incorrectly announced «**end if**» the result of an election. ~~{3} An attempt is punishable.~~«**end if**»

ANNEXES

COMPUTABLES

[UnauthorisedVoting] = VotesWithoutAuthorisation is true or AssistedVoteAgainstDecision is true or AssistedVoteWithoutDecision is true

[Para1] = UnauthorisedVoting is true or BringsAboutIncorrectResult is true or FalsifiesResult is true

[Para2] = AnnouncesIncorrectResult is true or CausesIncorrectAnnouncement is true

[ElectoralFraud] = Para1 is true or Para2 is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
EFR-R01	ACT	Actor		VotesWithoutAuthorisation is true
EFR-R02	ACT	Actor		BringsAboutIncorrectResult is true
EFR-R03	ACT	Actor		FalsifiesResult is true
EFR-R04	ACT	Actor		AnnouncesIncorrectResult is true
EFR-R05	ACT	Actor		CausesIncorrectAnnouncement is true
EFR-R06	ACT	Actor		AssistedVoteAgainstDecision is true
EFR-R07	ACT	Actor		AssistedVoteWithoutDecision is true
EFR-R08	ACT	Actor	extension (sentence 2): voting without authorisation includes the assisted-voting cases; authored in [UnauthorisedVoting]	UnauthorisedVoting is true
EFR-P0	PROHIBITION	Actor	not realise	not ElectoralFraud

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} votes without authorisation	Merkmal	{VotesWithoutAuthorisation}	EFR-R01	is true
{Actor} otherwise brings about an incorrect result of an election	Merkmal	{BringsAboutIncorrectResult}	EFR-R02	is true
{Actor} falsifies the result	Merkmal	{FalsifiesResult}	EFR-R03	is true
{Actor} incorrectly announces the result of an election	Merkmal	{AnnouncesIncorrectResult}	EFR-R04	is true
{Actor} causes the result of an election to be incorrectly announced	Merkmal	{CausesIncorrectAnnouncement}	EFR-R05	is true
{Actor} casts a vote within permissible assistance contrary to the voting decision of the person entitled to vote	Merkmal	{AssistedVoteAgainstDecision}	EFR-R06	is true
{Actor} casts a vote within permissible assistance without an expressed voting decision of the person entitled to vote	Merkmal	{AssistedVoteWithoutDecision}	EFR-R07	is true
(3) attempt	attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{AnnouncesIncorrectResult}	Boolean	true / false / unknown	Session	{Actor} incorrectly announces the result of an election
{AssistedVoteAgainstDecision}	Boolean	true / false / unknown	Session	{Actor} casts a vote within permissible assistance contrary to the voting decision of the person entitled to vote
{AssistedVoteWithoutDecision}	Boolean	true / false / unknown	Session	{Actor} casts a vote within permissible assistance without an expressed voting decision of the person entitled to vote
{BringsAboutIncorrectResult}	Boolean	true / false / unknown	Session	{Actor} otherwise brings about an incorrect result of an election
{CausesIncorrectAnnouncement}	Boolean	true / false / unknown	Session	{Actor} causes the result of an election to be incorrectly announced
{FalsifiesResult}	Boolean	true / false / unknown	Session	{Actor} falsifies the result
{VotesWithoutAuthorisation}	Boolean	true / false / unknown	Session	{Actor} votes without authorisation

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (({Actor} votes without authorisation or {Actor} casts a vote within permissible assistance contrary to the voting decision of the person entitled to vote or {Actor} casts a vote within permissible assistance without an expressed voting decision of the person entitled to vote) or {Actor} otherwise brings about an incorrect result of an election or {Actor} falsifies the result) or ({Actor} incorrectly announces the result of an election or {Actor} causes the result of an election to be incorrectly announced).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[UnauthorisedVoting]	VotesWithoutAuthorisation, AssistedVoteAgainstDecision, AssistedVoteWithoutDecision	false	Recomputes when any input changes; propagates into the composite.
[Para1]	UnauthorisedVoting, BringsAboutIncorrectResult, FalsifiesResult	false	Recomputes when any input changes; propagates into the composite.
[Para2]	AnnouncesIncorrectResult, CausesIncorrectAnnouncement	false	Recomputes when any input changes; propagates into the composite.
[ElectoralFraud]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (EFR-P0)	[ElectoralFraud]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {AnnouncesIncorrectResult}
- └ {AssistedVoteAgainstDecision}
- └ {AssistedVoteWithoutDecision}
- └ {BringsAboutIncorrectResult}
- └ {CausesIncorrectAnnouncement}
- └ {FalsifiesResult}
- └ {VotesWithoutAuthorisation}

↓

PHASE 2: evaluate act / intermediate computables

- └ [UnauthorisedVoting] = VotesWithoutAuthorisation is true or AssistedVoteAgainstDecision is true or AssistedVoteWithoutDecision is true
- └ [Para1] = UnauthorisedVoting is true or BringsAboutIncorrectResult is true or FalsifiesResult is true
- └ [Para2] = AnnouncesIncorrectResult is true or CausesIncorrectAnnouncement is true

↓

PHASE 3: evaluate the objective conditions

- └ [ElectoralFraud] = Para1 is true or Para2 is true

↓

VERDICT (PrimeRule)

- └ [ElectoralFraud] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [ElectoralFraud] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [ElectoralFraud] depends on [UnauthorisedVoting], [Para1], [Para2]; none refer back to [ElectoralFraud]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{AnnouncesIncorrectResult}	Element/Datum: {Actor} incorrectly announces the result of an election.?	Boolean
Q3	Session	{AssistedVoteAgainstDecision}	Element/Datum: {Actor} casts a vote within permissible assistance contrary to the voting decision of the person entitled to vote.?	Boolean
Q4	Session	{AssistedVoteWithoutDecision}	Element/Datum: {Actor} casts a vote within permissible assistance without an expressed voting decision of the person entitled to vote.?	Boolean
Q5	Session	{BringsAboutIncorrectResult}	Element/Datum: {Actor} otherwise brings about an incorrect result of an election.?	Boolean
Q6	Session	{CausesIncorrectAnnouncement}	Element/Datum: {Actor} causes the result of an election to be incorrectly announced.?	Boolean
Q7	Session	{FalsifiesResult}	Element/Datum: {Actor} falsifies the result.?	Boolean
Q8	Session	{VotesWithoutAuthorisation}	Element/Datum: {Actor} votes without authorisation.?	Boolean

FLAGS

SCOPE Paragraphs 1 and 2, both sentences of (1) live. Struck per the marked-up source: (1)'s penalty, (2)'s "Ebenso wird bestraft" head, and (3).

ASSISTED-VOTING EXTENSION (SENTENCE 2) The live second sentence extends unauthorised voting to the two assisted-voting cases; authored in [UnauthorisedVoting] and recorded as rule EFR-R80 on the §232 sentence-2 pattern.

TREATMENT §107a is Operomise-tagged.

(1) Any person who 1. obtains their entry in the electoral register (electoral card index) by false statements, 2. enters another person as a voter of whom they know that that person has no entitlement to entry, 3. prevents the entry of a person entitled to vote as a voter although they know of that person's entitlement to vote, 4. has themselves nominated as a candidate for an election although they are not eligible, shall be punished with imprisonment for up to six months or a fine of up to one hundred and eighty daily rates, unless the act is subject to a more severe penalty under other provisions. (2) The issuing of the election documents for the primary elections in social insurance corresponds to the entry in the electoral register as a voter.

«if FalsificationOfElectionDocuments is true»(1) {Actor} who 1. «if {ObtainsOwnEntryByFalseStatements} is true»obtains the entry of {Actor} in the electoral register (electoral card index) by false statements «end if», 2. «if {EntersAnotherAsVoter} is true»enters another person as a voter «end if» of whom «if {KnowsNoEntitlementToEntry} is true»{Actor} knows that that person has no entitlement to entry «end if», 3. «if {PreventsEntryOfEntitledPerson} is true»prevents the entry of a person entitled to vote as a voter «end if» although «if {KnowsEntitlementToVote} is true»{Actor} knows of that person's entitlement to vote «end if», 4. «if {HasSelfNominated} is true»has {Actor} nominated as a candidate for an election «end if» although «if {NotEligible} is true»{Actor} is not eligible «end if», shall be punished with imprisonment for up to six months or a fine of up to one hundred and eighty daily rates, unless the act is subject to a more severe penalty under other provisions. (2) The issuing of the election documents for the primary elections in social insurance corresponds to the entry in the electoral register as a voter.«end if»

ANNEXES

COMPUTABLES

[Leg2] = EntersAnotherAsVoter is true and KnowsNoEntitlementToEntry is true

[Leg3] = PreventsEntryOfEntitledPerson is true and KnowsEntitlementToVote is true

[Leg1] = ObtainsOwnEntryByFalseStatements is true

[Leg4] = HasSelfNominated is true and NotEligible is true

[FalsificationOfElectionDocuments] = Leg1 is true or Leg2 is true or Leg3 is true or Leg4 is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
FED-R01	ACT	Actor		ObtainsOwnEntryByFalseStatements is true
FED-R02	ACT	Actor		EntersAnotherAsVoter is true
FED-R03	ACT	Actor		KnowsNoEntitlementToEntry is true
FED-R04	ACT	Actor		PreventsEntryOfEntitledPerson is true
FED-R05	ACT	Actor		KnowsEntitlementToVote is true
FED-R06	ACT	Actor		HasSelfNominated is true
FED-R07	CONDITION	None		NotEligible is true
FED-P0	PROHIBITION	Actor	not realise	not FalsificationOfElectionDocuments

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} obtains the entry of {Actor} in the electoral register by false statements	Merkmal	{ObtainsOwnEntryByFalseStatements}	FED- R01	is true
{Actor} enters another person as a voter	Merkmal	{EntersAnotherAsVoter}	FED- R02	is true
{Actor} knows that the person has no entitlement to entry	Merkmal	{KnowsNoEntitlementToEntry}	FED- R03	is true
{Actor} prevents the entry of a person entitled to vote as a voter	Merkmal	{PreventsEntryOfEntitledPerson}	FED- R04	is true
{Actor} knows of that person's entitlement to vote	Merkmal	{KnowsEntitlementToVote}	FED- R05	is true
{Actor} has {Actor} nominated as a candidate for an election	Merkmal	{HasSelfNominated}	FED- R06	is true
{Actor} is not eligible	Merkmal	{NotEligible}	FED- R07	is true
penalty with subsidiarity; (2) social-insurance equivalence	sanction / deeming rule	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{EntersAnotherAsVoter}	Boolean	true / false / unknown	Session	{Actor} enters another person as a voter
{HasSelfNominated}	Boolean	true / false / unknown	Session	{Actor} has {Actor} nominated as a candidate for an election
{KnowsEntitlementToVote}	Boolean	true / false / unknown	Session	{Actor} knows of that person's entitlement to vote
{KnowsNoEntitlementToEntry}	Boolean	true / false / unknown	Session	{Actor} knows that the person has no entitlement to entry
{NotEligible}	Boolean	true / false / unknown	Session	{Actor} is not eligible
{ObtainsOwnEntryByFalseStatements}	Boolean	true / false / unknown	Session	{Actor} obtains the entry of {Actor} in the electoral register by false statements
{PreventsEntryOfEntitledPerson}	Boolean	true / false / unknown	Session	{Actor} prevents the entry of a person entitled to vote as a voter

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} obtains the entry of {Actor} in the electoral register by false statements) or ({Actor} enters another person as a voter and {Actor} knows that the person has no entitlement to entry) or ({Actor} prevents the entry of a person entitled to vote as a voter and {Actor} knows of that person's entitlement to vote) or ({Actor} has {Actor} nominated as a candidate for an election and {Actor} is not eligible).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Leg2]	EntersAnotherAsVoter, KnowsNoEntitlementToEntry	false	Recomputes when any input changes; propagates into the composite.
[Leg3]	PreventsEntryOfEntitledPerson, KnowsEntitlementToVote	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	ObtainsOwnEntryByFalseStatements	false	Recomputes when any input changes; propagates into the composite.
[Leg4]	HasSelfNominated, NotEligible	false	Recomputes when any input changes; propagates into the composite.
[FalsificationOfElectionDocuments]	Leg1, Leg2, Leg3, Leg4	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (FED-P0)	[FalsificationOfElectionDocuments]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Actor}

{EntersAnotherAsVoter}

{HasSelfNominated}

{KnowsEntitlementToVote}

{KnowsNoEntitlementToEntry}

{NotEligible}

{ObtainsOwnEntryByFalseStatements}

{PreventsEntryOfEntitledPerson}

↓

PHASE 2: evaluate act / intermediate computables

[Leg2] = EntersAnotherAsVoter is true and KnowsNoEntitlementToEntry is true

[Leg3] = PreventsEntryOfEntitledPerson is true and KnowsEntitlementToVote is true

[Leg1] = ObtainsOwnEntryByFalseStatements is true

[Leg4] = HasSelfNominated is true and NotEligible is true

↓

PHASE 3: evaluate the objective conditions

[FalsificationOfElectionDocuments] = Leg1 is true or Leg2 is true or Leg3 is true or Leg4 is true

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VERDICT (PrimeRule)

[FalsificationOfElectionDocuments] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[FalsificationOfElectionDocuments] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [FalsificationOfElectionDocuments] depends on [Leg2], [Leg3], [Leg1], [Leg4]; none refer back to [FalsificationOfElectionDocuments]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{EntersAnotherAsVoter}	Element/Datum: {Actor} enters another person as a voter.?	Boolean
Q3	Session	{HasSelfNominated}	Element/Datum: {Actor} has {Actor} nominated as a candidate for an election.?	Boolean
Q4	Session	{KnowsEntitlementToVote}	Element/Datum: {Actor} knows of that person's entitlement to vote.?	Boolean
Q5	Session	{KnowsNoEntitlementToEntry}	Element/Datum: {Actor} knows that the person has no entitlement to entry.?	Boolean
Q6	Session	{NotEligible}	Element/Datum: {Actor} is not eligible.?	Boolean
Q7	Session	{ObtainsOwnEntryByFalseStatements}	Element/Datum: {Actor} obtains the entry of {Actor} in the electoral register by false statements.?	Boolean
Q8	Session	{PreventsEntryOfEntitledPerson}	Element/Datum: {Actor} prevents the entry of a person entitled to vote as a voter.?	Boolean

FLAGS

SCOPE Paragraph 1's four legs, all live. Struck per the marked-up source: the penalty with its subsidiarity clause, and (2).

KNOWLEDGE ELEMENTS RETAINED (DELIBERATE) Legs 2 and 3 carry their knowledge elements ("von dem er weiß", "obwohl er dessen Wahlberechtigung kennt") live per the markup and the retention criterion: registering or refusing entries is routine administration; the knowledge is what separates the offence from error.

(2) DEEMING RULE STRUCK (RECORDED) The social-insurance equivalence is struck, the opposite treatment to §107a's live assisted-voting extension; followed as marked and recorded as an editorial decision.

SUBSIDIARITY STRUCK (RECORDED) "wenn die Tat nicht in anderen Vorschriften mit schwererer Strafe bedroht ist" sits inside the penalty strike, the §246/§316 treatment, unlike the live negatives of §147 and §233(5).

TREATMENT §107b is Operomise-tagged.

§107c · Breach of electoral secrecy

BreachOfElectoralSecrecy · provenance StGB 107c · whole encoded; penalty struck

SOURCE (ENGLISH, UNOFFICIAL)

OPEROME MARKUP - ORIGINAL TEXT ENCODED

Any person who contravenes a provision serving the protection of electoral secrecy with the intention of obtaining, for themselves or another, knowledge of how someone voted shall be punished with imprisonment for up to two years or a fine.

«if BreachOfElectoralSecrecy is true»{Actor} who «if {ContravenesSecrecyProvision} is true»contravenes a provision serving the protection of electoral secrecy «end if» «if {ActsWithKnowledgeIntention} is true»with the intention of obtaining, «if {ForSelf} is true»for {Actor} «end if» «if {ForAnother} is true»or another «end if», knowledge of how someone voted «end if» shall be punished with imprisonment for up to two years or a fine.«end if»

ANNEXES

COMPUTABLES

[BreachOfElectoralSecrecy] = ContravenesSecrecyProvision is true and ActsWithKnowledgeIntention is true and (ForSelf is true or ForAnother is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BES-R01	ACT	Actor		ContravenesSecrecyProvision is true
BES-R02	ACT	Actor		ActsWithKnowledgeIntention is true
BES-R03	CONDITION	None		ForSelf is true
BES-R04	CONDITION	None		ForAnother is true
BES-P0	PROHIBITION	Actor	not realise	not BreachOfElectoralSecrecy

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} contravenes a provision serving the protection of electoral secrecy	Merkmal	{ContravenesSecrecyProvision}	BES-R01	is true
{Actor} acts with the intention of obtaining knowledge of how someone voted	Merkmal	{ActsWithKnowledgeIntention}	BES-R02	is true
for {Actor}	Merkmal	{ForSelf}	BES-R03	is true
for another person	Merkmal	{ForAnother}	BES-R04	is true
penalty	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ActsWithKnowledgeIntention}	Boolean	true / false / unknown	Session	{Actor} acts with the intention of obtaining knowledge of how someone voted
{ContravenesSecrecyProvision}	Boolean	true / false / unknown	Session	{Actor} contravenes a provision serving the protection of electoral secrecy
{ForAnother}	Boolean	true / false / unknown	Session	for another person
{ForSelf}	Boolean	true / false / unknown	Session	for {Actor}

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} contravenes a provision serving the protection of electoral secrecy and {Actor} acts with the intention of obtaining knowledge of how someone voted and (for {Actor} or for another person).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[BreachOfElectoralSecrecy]	ContravenesSecrecyProvision, ActsWithKnowledgeIntention, ForSelf, ForAnother	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BES-P0)	[BreachOfElectoralSecrecy]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {ActsWithKnowledgeIntention}
- └ {ContravenesSecrecyProvision}
- └ {ForAnother}
- └ {ForSelf}

↓

PHASE 2: evaluate act / intermediate computables

↓

PHASE 3: evaluate the objective conditions

- └ [BreachOfElectoralSecrecy] = ContravenesSecrecyProvision is true and ActsWithKnowledgeIntention is true and (ForSelf is true or ForAnother is true)

↓

VERDICT (PrimeRule)

- └ [BreachOfElectoralSecrecy] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [BreachOfElectoralSecrecy] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

• [BreachOfElectoralSecrecy] depends on ; none refer back to [BreachOfElectoralSecrecy]. No definitional cycle.

• Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ActsWithKnowledgeIntention}	Element/Datum: {Actor} acts with the intention of obtaining knowledge of how someone voted.?	Boolean
Q3	Session	{ContravenesSecrecyProvision}	Element/Datum: {Actor} contravenes a provision serving the protection of electoral secrecy.?	Boolean
Q4	Session	{ForAnother}	Element/Datum: for another person.?	Boolean
Q5	Session	{ForSelf}	Element/Datum: for {Actor}.?	Boolean

FLAGS

SCOPE The single sentence; only the penalty struck.

KNOWLEDGE INTENTION RETAINED (DELIBERATE) “in der Absicht ... sich oder einem anderen Kenntnis davon zu verschaffen, wie jemand gewählt hat” is live per the markup and the retention criterion: handling ballot materials contrary to a formal secrecy provision occurs in routine administration; the intention is the separating element. Which provision was contravened escalates.

TREATMENT §107c is Operomise-tagged.

§108a · Deception of voters

DeceptionOfVoters · provenance StGB 108a · (1) encoded; (2) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Any person who by deception causes someone, when casting their vote, to err about the content of their declaration, or against their will not to vote or to vote invalidly, shall be punished with imprisonment for up to two years or a fine. (2) An attempt is punishable.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if DeceptionOfVoters is true»(1) {Actor} who «if {CausesByDeception} is true»by deception causes «end if» someone, when casting their vote, «if {ErrsAboutDeclaration} is true»to err about the content of their declaration «end if», or against their will «if {DoesNotVoteAgainstWill} is true»not to vote «end if» «if {VotesInvalidlyAgainstWill} is true»or to vote invalidly «end if» shall be punished with imprisonment for up to two years or a fine. (2) An attempt is punishable.«end if»

ANNEXES

COMPUTABLES

[DeceptionOfVoters] = CausesByDeception is true and (ErrsAboutDeclaration is true or DoesNotVoteAgainstWill is true or VotesInvalidlyAgainstWill is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
DOV-R01	ACT	Actor		CausesByDeception is true
DOV-R02	CONDITION	None		ErrsAboutDeclaration is true
DOV-R03	CONDITION	None		DoesNotVoteAgainstWill is true
DOV-R04	CONDITION	None		VotesInvalidlyAgainstWill is true
DOV-P0	PROHIBITION	Actor	not realise	not DeceptionOfVoters

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} by deception causes the outcome	Merkmal	{CausesByDeception}	DOV-R01	is true
a person errs about the content of their declaration when casting their vote	Merkmal	{ErrsAboutDeclaration}	DOV-R02	is true
a person against their will does not vote	Merkmal	{DoesNotVoteAgainstWill}	DOV-R03	is true
a person against their will votes invalidly	Merkmal	{VotesInvalidlyAgainstWill}	DOV-R04	is true
(2) attempt	attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{CausesByDeception}	Boolean	true / false / unknown	Session	{Actor} by deception causes the outcome
{DoesNotVoteAgainstWill}	Boolean	true / false / unknown	Session	a person against their will does not vote
{ErrsAboutDeclaration}	Boolean	true / false / unknown	Session	a person errs about the content of their declaration when casting their vote
{VotesInvalidlyAgainstWill}	Boolean	true / false / unknown	Session	a person against their will votes invalidly

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} by deception causes the outcome and (a person errs about the content of their declaration when casting their vote or a person against their will does not vote or a person against their will votes invalidly).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[DeceptionOfVoters]	CausesByDeception, ErrsAboutDeclaration, DoesNotVoteAgainstWill, VotesInvalidlyAgainstWill	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (DOV-P0)	[DeceptionOfVoters]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- {Actor}
- {CausesByDeception}
- {DoesNotVoteAgainstWill}
- {ErrsAboutDeclaration}
- {VotesInvalidlyAgainstWill}

↓

PHASE 2: evaluate act / intermediate computables

↓

PHASE 3: evaluate the objective conditions

- [DeceptionOfVoters] = CausesByDeception is true and (ErrsAboutDeclaration is true or DoesNotVoteAgainstWill is true or VotesInvalidlyAgainstWill is true)

↓

VERDICT (PrimeRule)

- [DeceptionOfVoters] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- [DeceptionOfVoters] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [DeceptionOfVoters] depends on ; none refer back to [DeceptionOfVoters]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{CausesByDeception}	Element/Datum: {Actor} by deception causes the outcome.?	Boolean
Q3	Session	{DoesNotVoteAgainstWill}	Element/Datum: a person against their will does not vote.?	Boolean
Q4	Session	{ErrsAboutDeclaration}	Element/Datum: a person errs about the content of their declaration when casting their vote.?	Boolean
Q5	Session	{VotesInvalidlyAgainstWill}	Element/Datum: a person against their will votes invalidly.?	Boolean

FLAGS

- SCOPE Paragraph 1: the deception conduct over the three caused outcomes. Struck per the marked-up source: the penalty and (2).
- TREATMENT §108a is Operomise-tagged. §108 voter coercion is Excluded as covered by the general coercion principles.

§108b · Bribery of voters

BriberyOfVoters · provenance StGB 108b · (1)-(2) encoded; sanctions phrases struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Any person who offers, promises or grants to another gifts or other advantages in return for not voting or for voting in a particular way shall be punished with imprisonment for up to five years or a fine. (2) The same penalty shall apply to anyone who demands, allows themselves to be promised or accepts gifts or other advantages in return for not voting or for voting in a particular way.

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if BriberyOfVoters is true»(1) {Actor} who «if {Offers} is true»offers «end if» «if {Promises} is true», promises «end if» «if {Grants} is true»or grants «end if» to another «if {Gifts} is true»gifts «end if» «if {OtherAdvantages} is true»or other advantages «end if» «if {ForNotVoting} is true»in return for not voting «end if» «if {ForVotingInParticularWay} is true»or for voting in a particular way «end if» ~~shall be punished with imprisonment for up to five years or a fine.~~ (2) ~~The same penalty shall apply to~~ {Actor} who «if {Demands} is true»demands «end if» «if {AllowsToBePromised} is true», allows to be promised to {Actor} «end if» «if {Accepts} is true»or accepts «end if» «if {Gifts} is true»gifts «end if» «if {OtherAdvantages} is true»or other advantages «end if» «if {ForNotVoting} is true»in return for not voting «end if» «if {ForVotingInParticularWay} is true»or for voting in a particular way «end if».«end if»

ANNEXES

COMPUTABLES

[ActiveSide] = Offers is true or Promises is true or Grants is true

[Consideration] = ForNotVoting is true or ForVotingInParticularWay is true

[PassiveSide] = Demands is true or AllowsToBePromised is true or Accepts is true

[Advantage] = Gifts is true or OtherAdvantages is true

[BriberyOfVoters] = Advantage is true and Consideration is true and (ActiveSide is true or PassiveSide is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BOV-R01	ACT	Actor		Offers is true
BOV-R02	ACT	Actor		Promises is true
BOV-R03	ACT	Actor		Grants is true
BOV-R04	ACT	Actor		Demands is true
BOV-R05	ACT	Actor		AllowsToBePromised is true
BOV-R06	ACT	Actor		Accepts is true
BOV-R07	CONDITION	None		Gifts is true
BOV-R08	CONDITION	None		OtherAdvantages is true
BOV-R09	CONDITION	None		ForNotVoting is true
BOV-R10	CONDITION	None		ForVotingInParticularWay is true
BOV-P0	PROHIBITION	Actor	not realise	not BriberyOfVoters

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} offers the advantage to another person	Merkmal	{Offers}	BOV-R01	is true
{Actor} promises the advantage to another person	Merkmal	{Promises}	BOV-R02	is true
{Actor} grants the advantage to another person	Merkmal	{Grants}	BOV-R03	is true
{Actor} demands the advantage	Merkmal	{Demands}	BOV-R04	is true
{Actor} allows the advantage to be promised to {Actor}	Merkmal	{AllowsToBePromised}	BOV-R05	is true
{Actor} accepts the advantage	Merkmal	{Accepts}	BOV-R06	is true
gifts	Merkmal	{Gifts}	BOV-R07	is true
other advantages	Merkmal	{OtherAdvantages}	BOV-R08	is true
in return for not voting	Merkmal	{ForNotVoting}	BOV-R09	is true
in return for voting in a particular way	Merkmal	{ForVotingInParticularWay}	BOV-R10	is true
penalty phrases of (1) and (2)	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Accepts}	Boolean	true / false / unknown	Session	{Actor} accepts the advantage
{Actor}	Reference	–	Session	any person (the actor)
{AllowsToBePromised}	Boolean	true / false / unknown	Session	{Actor} allows the advantage to be promised to {Actor}
{Demands}	Boolean	true / false / unknown	Session	{Actor} demands the advantage
{ForNotVoting}	Boolean	true / false / unknown	Session	in return for not voting
{ForVotingInParticularWay}	Boolean	true / false / unknown	Session	in return for voting in a particular way
{Gifts}	Boolean	true / false / unknown	Session	gifts
{Grants}	Boolean	true / false / unknown	Session	{Actor} grants the advantage to another person
{Offers}	Boolean	true / false / unknown	Session	{Actor} offers the advantage to another person
{OtherAdvantages}	Boolean	true / false / unknown	Session	other advantages
{Promises}	Boolean	true / false / unknown	Session	{Actor} promises the advantage to another person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (gifts or other advantages) and (in return for not voting or in return for voting in a particular way) and ((({Actor} offers the advantage to another person or {Actor} promises the advantage to another person or {Actor} grants the advantage to another person) or ({Actor} demands the advantage or {Actor} allows the advantage to be promised to {Actor} or {Actor} accepts the advantage)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ActiveSide]	Offers, Promises, Grants	false	Recomputes when any input changes; propagates into the composite.
[Consideration]	ForNotVoting, ForVotingInParticularWay	false	Recomputes when any input changes; propagates into the composite.
[PassiveSide]	Demands, AllowsToBePromised, Accepts	false	Recomputes when any input changes; propagates into the composite.
[Advantage]	Gifts, OtherAdvantages	false	Recomputes when any input changes; propagates into the composite.
[BriberyOfVoters]	Advantage, Consideration, ActiveSide, PassiveSide	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BOV-P0)	[BriberyOfVoters]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

```
PHASE 1: gather inputs (Session)
├ {Accepts}
├ {Actor}
├ {AllowsToBePromised}
├ {Demands}
├ {ForNotVoting}
├ {ForVotingInParticularWay}
├ {Gifts}
├ {Grants}
├ {Offers}
├ {OtherAdvantages}
├ {Promises}
↓
PHASE 2: evaluate act / intermediate computables
├ [ActiveSide] = Offers is true or Promises is true or Grants is true
├ [Consideration] = ForNotVoting is true or ForVotingInParticularWay is true
├ [PassiveSide] = Demands is true or AllowsToBePromised is true or Accepts is true
├ [Advantage] = Gifts is true or OtherAdvantages is true
↓
PHASE 3: evaluate the objective conditions
└ [BriberyOfVoters] = Advantage is true and Consideration is true and (ActiveSide is true or PassiveSide is true)
↓
VERDICT (PrimeRule)
├ [BriberyOfVoters] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└ [BriberyOfVoters] is false → not realised
```

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [BriberyOfVoters] depends on [ActiveSide], [Consideration], [PassiveSide], [Advantage]; none refer back to [BriberyOfVoters]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Accepts}	Element/Datum: {Actor} accepts the advantage.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{AllowsToBePromised}	Element/Datum: {Actor} allows the advantage to be promised to {Actor}.?	Boolean
Q4	Session	{Demands}	Element/Datum: {Actor} demands the advantage.?	Boolean
Q5	Session	{ForNotVoting}	Element/Datum: in return for not voting.?	Boolean
Q6	Session	{ForVotingInParticularWay}	Element/Datum: in return for voting in a particular way.?	Boolean
Q7	Session	{Gifts}	Element/Datum: gifts.?	Boolean
Q8	Session	{Grants}	Element/Datum: {Actor} grants the advantage to another person.?	Boolean
Q9	Session	{Offers}	Element/Datum: {Actor} offers the advantage to another person.?	Boolean
Q10	Session	{OtherAdvantages}	Element/Datum: other advantages.?	Boolean
Q11	Session	{Promises}	Element/Datum: {Actor} promises the advantage to another person.?	Boolean

FLAGS

- SCOPE** Both paragraphs live: the active side (offers, promises, grants) and the passive side (demands, allows to be promised, accepts), over the shared advantage and consideration pairs. Struck per the marked-up source: (1)'s penalty and (2)'s "Ebenso wird bestraft" head.
- SHARED MERKMAL** The advantage pair and the consideration pair are authored once and consumed by both sides; the six conduct verbs are the classic corruption triads, mirrored in §108e.
- TREATMENT** §108b is Operomise-tagged.

§108e · Bribery of and bribing elected representatives

BriberyOfElectedRepresentatives · provenance StGB 108e · (1)-(2) and the (4) exemption encoded; (3), (5) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) Any person who, as a member of a popular assembly or of a legislative body of the Federation or the Laender [struck; replaced:] of a state, of a subunit of a state or of an international or supranational organisation, demands, allows themselves to be promised or accepts an unjustified advantage for themselves or a third party in return for performing or omitting an act in the exercise of their mandate on commission or instruction, shall be punished with imprisonment for a term of one to ten years, in less serious cases with imprisonment for a term of six months to five years. (2) The same penalty shall apply to anyone who offers, promises or grants to a member of a popular assembly or of a legislative body of a state, of a subunit of a state or of an international or supranational organisation an unjustified advantage for that member or a third party in return for that member performing or omitting an act in the exercise of their mandate on commission or instruction. (3) The members named in paragraphs 1 and 2 are equalled by members of: 1. a popular assembly of a municipal territorial entity, 2. a body elected by direct and general election of an administrative unit formed for a part of a Land or	<pre>«if BriberyOfElectedRepresentatives is true»(1) {Actor} who, as «if {MemberOfPopularAssembly} is true»a member of a popular assembly «end if» «if {MemberOfLegislativeBody} is true»or of a legislative body «end if» of the Federation or the Laender «if {OfState} is true»of a state «end if» «if {OfSubunitOfState} is true», of a subunit of a state «end if» «if {OfInternationalOrganisation} is true»or of an international or supranational organisation «end if», «if {Demands} is true»demands «end if» «if {AllowsToBePromised} is true», allows to be promised «end if» «if {Accepts} is true»or accepts «end if» «if {UnjustifiedAdvantage} is true»an unjustified advantage «end if» «if {ForSelf} is true»for the member «end if» «if {ForThirdParty} is true»or a third party «end if» in return for «if {ActOnInstructionInMandate} is true»performing «end if» «if {OmissionOnInstructionInMandate} is true»or omitting «end if» an act in the exercise of the mandate on commission or instruction shall be punished with</pre>

municipal entity, 3. the Federal Convention, 4. the European Parliament, 5. a parliamentary assembly of an international organisation, and 6. a legislative organ of a foreign state. (4) An unjustified advantage does in particular not exist where the acceptance of the advantage is consistent with the provisions governing the member's legal position. No unjustified advantage are 1. a political mandate or a political function, and 2. a donation permissible under the Political Parties Act or corresponding statutes. (5) In addition to a term of imprisonment of at least six months, the court may deprive the offender of the capacity to obtain rights from public elections and the right to vote or to vote in public matters.

imprisonment for a term of one to ten years, in less serious cases with imprisonment for a term of six months to five years. (2) The same penalty shall apply to **{Actor}** who **«if {Offers} is true»**offers **«end if»** **«if {Promises} is true»**, promises **«end if»** **«if {Grants} is true»**or grants **«end if»** to **«if {MemberOfPopularAssembly} is true»**a member of a popular assembly **«end if»** **«if {MemberOfLegislativeBody} is true»**or of a legislative body **«end if»** **«if {OfState} is true»**of a state **«end if»** **«if {OfSubunitOfState} is true»**, of a subunit of a state **«end if»** **«if {OfInternationalOrganisation} is true»**or of an international or supranational organisation **«end if»** of the Federation or the Laender **«if {UnjustifiedAdvantage} is true»**an unjustified advantage **«end if»** **«if {ForSelf} is true»**for that member **«end if»** **«if {ForThirdParty} is true»**or a third party **«end if»** in return for that member **«if {ActOnInstructionInMandate} is true»**performing **«end if»** **«if {OmissionOnInstructionInMandate} is true»**or omitting **«end if»** an act in the exercise of the mandate on commission or instruction. (3) The members named in paragraphs 1 and 2 are equalled by members of: 1. a popular assembly of a municipal territorial entity, 2. a body elected by direct and general election of an administrative unit formed for a part of a Land or municipal entity, 3. the Federal Convention, 4. the European Parliament, 5. a parliamentary assembly of an international organisation, and 6. a legislative organ of a foreign state. **«if [AdvantageNotUnjustified] is true»**(4) An unjustified advantage does in particular not exist where **«if {AcceptanceConsistentWithMemberRules} is true»**the acceptance of the advantage is consistent with the provisions governing the member's legal position **«end if»**. No unjustified advantage are 1. **«if {PoliticalMandateOrFunction} is true»**a political mandate or a political function **«end if»** and 2. **«if {LawfulPartyDonation} is true»**a donation permissible under the Political Parties Act or corresponding statutes **«end if»** **«end if»**. (5) In addition to a term of imprisonment of at least six months, the court may deprive the offender of the capacity to obtain rights from public elections and the right to vote or to vote in public matters.**«end if»**

ANNEXES

COMPUTABLES

```
[AdvantageNotUnjustified] = AcceptanceConsistentWithMemberRules is true or PoliticalMandateOrFunction is true or LawfulPartyDonation is true

[MemberStatus] = (MemberOfPopularAssembly is true or MemberOfLegislativeBody is true) and (OfState is true or OfSubunitOfState is true or OfInternationalOrganisation is true)

[PassiveSide] = MemberStatus is true and (Demands is true or AllowsToBePromised is true or Accepts is true)

[Beneficiary] = ForSelf is true or ForThirdParty is true

[ActiveSide] = Offers is true or Promises is true or Grants is true

[Consideration] = ActOnInstructionInMandate is true or OmissionOnInstructionInMandate is true

[BriberyOfElectedRepresentatives] = UnjustifiedAdvantage is true and Beneficiary is true and Consideration is true and (PassiveSide is true or (ActiveSide is true and MemberStatus is true))
```

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BER-R01	CONDITION	None		MemberOfPopularAssembly is true
BER-R02	CONDITION	None		MemberOfLegislativeBody is true
BER-R03	CONDITION	None		OfState is true
BER-R04	CONDITION	None		OfSubunitOfState is true
BER-R05	CONDITION	None		OfInternationalOrganisation is true
BER-R06	ACT	Actor		Demands is true
BER-R07	ACT	Actor		AllowsToBePromised is true
BER-R08	ACT	Actor		Accepts is true
BER-R09	ACT	Actor		Offers is true
BER-R10	ACT	Actor		Promises is true
BER-R11	ACT	Actor		Grants is true

BER-R12	CONDITION	None		UnjustifiedAdvantage is true
BER-R13	CONDITION	None		ForSelf is true
BER-R14	CONDITION	None		ForThirdParty is true
BER-R15	CONDITION	None		ActOnInstructionInMandate is true
BER-R16	CONDITION	None		OmissionOnInstructionInMandate is true
BER-R17	CONDITION	None		AcceptanceConsistentWithMemberRules is true
BER-R18	CONDITION	None		PoliticalMandateOrFunction is true
BER-R19	CONDITION	None		LawfulPartyDonation is true
BER-R80	CONDITION	None	exemption (paragraph 4, live): an unjustified advantage does in particular not exist where acceptance is consistent with the provisions governing the member's legal position; a political mandate or function and a lawful party donation are no unjustified advantage; encoded as the separate negative [AdvantageNotUnjustified] qualifying {UnjustifiedAdvantage}, never inside the legs	AdvantageNotUnjustified is true
BER-P0	PROHIBITION	Actor	not realise	not BriberyOfElectedRepresentatives

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} is a member of a popular assembly	Merkmal	{MemberOfPopularAssembly}	BER-R01	is true
{Actor} is a member of a legislative body	Merkmal	{MemberOfLegislativeBody}	BER-R02	is true
of a state	Merkmal	{OfState}	BER-R03	is true
of a subunit of a state	Merkmal	{OfSubunitOfState}	BER-R04	is true
of an international organisation	Merkmal	{OfInternationalOrganisation}	BER-R05	is true
{Actor} demands the advantage	Merkmal	{Demands}	BER-R06	is true
{Actor} allows the advantage to be promised	Merkmal	{AllowsToBePromised}	BER-R07	is true
{Actor} accepts the advantage	Merkmal	{Accepts}	BER-R08	is true
{Actor} offers the advantage to the member	Merkmal	{Offers}	BER-R09	is true
{Actor} promises the advantage to the member	Merkmal	{Promises}	BER-R10	is true
{Actor} grants the advantage to the member	Merkmal	{Grants}	BER-R11	is true
the advantage is unjustified	Merkmal	{UnjustifiedAdvantage}	BER-R12	is true
for the member	Merkmal	{ForSelf}	BER-R13	is true
for a third party	Merkmal	{ForThirdParty}	BER-R14	is true
an act in the exercise of the mandate is to be performed on instruction	Merkmal	{ActOnInstructionInMandate}	BER-R15	is true
an act in the exercise of the mandate is to be omitted on instruction	Merkmal	{OmissionOnInstructionInMandate}	BER-R16	is true
the acceptance of the advantage is consistent with the provisions governing the member's legal position	Merkmal	{AcceptanceConsistentWithMemberRules}	BER-R17	is true
the advantage is a political mandate	Merkmal	{PoliticalMandateOrFunction}	BER-R18	is true
the advantage is a donation permissible under the Political Parties Act	Merkmal	{LawfulPartyDonation}	BER-R19	is true
(3) equivalence catalogue; (5) collateral consequence	deeming rule / consequence	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{AcceptanceConsistentWithMemberRules}	Boolean	true / false / unknown	Session	the acceptance of the advantage is consistent with the provisions governing the member's legal position
{Accepts}	Boolean	true / false / unknown	Session	{Actor} accepts the advantage
{ActOnInstructionInMandate}	Boolean	true / false / unknown	Session	an act in the exercise of the mandate is to be performed on instruction
{Actor}	Reference	–	Session	any person (the actor)

<code>{AllowsToBePromised}</code>	Boolean	true / false / unknown	Session	{Actor} allows the advantage to be promised
<code>{Demands}</code>	Boolean	true / false / unknown	Session	{Actor} demands the advantage
<code>{ForSelf}</code>	Boolean	true / false / unknown	Session	for the member
<code>{ForThirdParty}</code>	Boolean	true / false / unknown	Session	for a third party
<code>{Grants}</code>	Boolean	true / false / unknown	Session	{Actor} grants the advantage to the member
<code>{LawfulPartyDonation}</code>	Boolean	true / false / unknown	Session	the advantage is a donation permissible under the Political Parties Act
<code>{MemberOfLegislativeBody}</code>	Boolean	true / false / unknown	Session	{Actor} is a member of a legislative body
<code>{MemberOfPopularAssembly}</code>	Boolean	true / false / unknown	Session	{Actor} is a member of a popular assembly
<code>{OfInternationalOrganisation}</code>	Boolean	true / false / unknown	Session	of an international organisation
<code>{OfState}</code>	Boolean	true / false / unknown	Session	of a state
<code>{OfSubunitOfState}</code>	Boolean	true / false / unknown	Session	of a subunit of a state
<code>{Offers}</code>	Boolean	true / false / unknown	Session	{Actor} offers the advantage to the member
<code>{OmissionOnInstructionInMandate}</code>	Boolean	true / false / unknown	Session	an act in the exercise of the mandate is to be omitted on instruction
<code>{PoliticalMandateOrFunction}</code>	Boolean	true / false / unknown	Session	the advantage is a political mandate
<code>{Promises}</code>	Boolean	true / false / unknown	Session	{Actor} promises the advantage to the member
<code>{UnjustifiedAdvantage}</code>	Boolean	true / false / unknown	Session	the advantage is unjustified

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: the advantage is unjustified and (for the member or for a third party) and (an act in the exercise of the mandate is to be performed on instruction or an act in the exercise of the mandate is to be omitted on instruction) and (((({Actor} is a member of a popular assembly or {Actor} is a member of a legislative body) and (of a state or of a subunit of a state or of an international organisation)) and ({Actor} demands the advantage or {Actor} allows the advantage to be promised or {Actor} accepts the advantage)) or ((({Actor} offers the advantage to the member or {Actor} promises the advantage to the member or {Actor} grants the advantage to the member) and ((({Actor} is a member of a popular assembly or {Actor} is a member of a legislative body) and (of a state or of a subunit of a state or of an international organisation))))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[AdvantageNotUnjustified]</code>	<code>AcceptanceConsistentWithMemberRules</code> , <code>PoliticalMandateOrFunction</code> , <code>LawfulPartyDonation</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[MemberStatus]</code>	<code>MemberOfPopularAssembly</code> , <code>MemberOfLegislativeBody</code> , <code>OfState</code> , <code>OfSubunitOfState</code> , <code>OfInternationalOrganisation</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[PassiveSide]</code>	<code>MemberStatus</code> , <code>Demands</code> , <code>AllowsToBePromised</code> , <code>Accepts</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[Beneficiary]</code>	<code>ForSelf</code> , <code>ForThirdParty</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[ActiveSide]</code>	<code>Offers</code> , <code>Promises</code> , <code>Grants</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[Consideration]</code>	<code>ActOnInstructionInMandate</code> , <code>OmissionOnInstructionInMandate</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[BriberyOfElectedRepresentatives]</code>	<code>UnjustifiedAdvantage</code> , <code>Beneficiary</code> , <code>Consideration</code> , <code>PassiveSide</code> , <code>ActiveSide</code> , <code>MemberStatus</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BER-P0)	<code>[BriberyOfElectedRepresentatives]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- `{AcceptanceConsistentWithMemberRules}`
- `{Accepts}`
- `{ActOnInstructionInMandate}`
- `{Actor}`
- `{AllowsToBePromised}`
- `{Demands}`
- `{ForSelf}`
- `{ForThirdParty}`
- `{Grants}`
- `{LawfulPartyDonation}`
- `{MemberOfLegislativeBody}`
- `{MemberOfPopularAssembly}`
- `{OfInternationalOrganisation}`

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who publicly, in an assembly or by disseminating content (Section 11(3)) incites to an unlawful act shall be punished as an instigator (Section 26). (2) If the incitement is without success, the penalty shall be imprisonment for up to five years or a fine. The penalty may not be more severe than that provided for the case of the incitement succeeding (paragraph 1); Section 49(1) no. 2 applies.	«if PublicIncitement is true»(1) {Actor} who «if {Publicly} is true»publicly «end if» «if {InAssembly} is true», in an assembly «end if» «if {ByDisseminatingContent} is true»or by disseminating content (Section 11(3)) «end if» «if {IncitesToUnlawfulAct} is true»incites to an unlawful act «end if» shall be punished as an instigator (Section 26). (2) If the incitement is without success, the penalty shall be imprisonment for up to five years or a fine. The penalty may not be more severe than that provided for the case of the incitement succeeding (paragraph 1); Section 49(1) no. 2 applies.«end if»
ANNEXES	

COMPUTABLES

[PublicMode] = Publicly is true or InAssembly is true or ByDisseminatingContent is true [PublicIncitement] = PublicMode is true and IncitesToUnlawfulAct is true
--

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
PIN-R01	CONDITION	None		Publicly is true
PIN-R02	CONDITION	None		InAssembly is true
PIN-R03	CONDITION	None		ByDisseminatingContent is true
PIN-R04	ACT	Actor		IncitesToUnlawfulAct is true
PIN-P0	PROHIBITION	Actor	not realise	not PublicIncitement

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
publicly	Merkmal	{Publicly}	PIN-R01	is true
in an assembly	Merkmal	{InAssembly}	PIN-R02	is true
by disseminating content (Section 11(3))	Merkmal	{ByDisseminatingContent}	PIN-R03	is true
{Actor} incites to an unlawful act	Merkmal	{IncitesToUnlawfulAct}	PIN-R04	is true
instigator penalty reference; (2) unsuccessful incitement	sanction / variant	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ByDisseminatingContent}	Boolean	true / false / unknown	Session	by disseminating content (Section 11(3))
{InAssembly}	Boolean	true / false / unknown	Session	in an assembly
{IncitesToUnlawfulAct}	Boolean	true / false / unknown	Session	{Actor} incites to an unlawful act
{Publicly}	Boolean	true / false / unknown	Session	publicly

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (publicly or in an assembly or by disseminating content (Section 11(3))) and {Actor} incites to an unlawful act. Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.
--

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[PublicMode]	Publicly, InAssembly, ByDisseminatingContent	false	Recomputes when any input changes; propagates into the composite.
[PublicIncitement]	PublicMode, IncitesToUnlawfulAct	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (PIN-P0)	[PublicIncitement]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session) └ {Actor} └ {ByDisseminatingContent} └ {InAssembly} └ {IncitesToUnlawfulAct} └ {Publicly} ↓ PHASE 2: evaluate act / intermediate computables └ [PublicMode] = Publicly is true or InAssembly is true or ByDisseminatingContent is true ↓ PHASE 3: evaluate the objective conditions └ [PublicIncitement] = PublicMode is true and IncitesToUnlawfulAct is true ↓ VERDICT (PrimeRule)
--

└─ [PublicIncitement] is true objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└─ [PublicIncitement] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [PublicIncitement] depends on [PublicMode]; none refer back to [PublicIncitement]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ByDisseminatingContent}	Element/Datum: by disseminating content (Section 11(3)).?	Boolean
Q3	Session	{InAssembly}	Element/Datum: in an assembly.?	Boolean
Q4	Session	{IncitesToUnlawfulAct}	Element/Datum: {Actor} incites to an unlawful act.?	Boolean
Q5	Session	{Publicly}	Element/Datum: publicly.?	Boolean

FLAGS

- SCOPE Paragraph 1: the three public modes over the incitement conduct. Struck per the marked-up source: the instigator penalty reference and (2) whole.
- RELATION TO §26 The struck phrase “wie ein Anstifter (§ 26) bestraft” is a penalty reference, not an element; the corpus §26 instigation scope stands independently and is not consumed here.
- TREATMENT §111 is Operomise-tagged.

§123 · Trespass

Trespass · provenance StGB 123 · (1) whole encoded; (2) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who unlawfully intrudes into the dwelling, the business premises or the enclosed property of another, or into enclosed rooms designated for public service or transport, or who, lingering therein without authority, fails to leave on the demand of the entitled person, shall be punished with imprisonment for up to one year or a fine. (2) The offence is prosecuted only upon application.	«if Trespass is true»(1) {Actor} who «if {IntrudesUnlawfully} is true»unlawfully intrudes «end if» into «if {Dwelling} is true»the dwelling «end if» «if {BusinessPremises} is true», the business premises «end if» «if {EnclosedProperty} is true»or the enclosed property of another «end if» «if {EnclosedPublicRooms} is true», or into enclosed rooms designated for public service or transport «end if», or who, «if {LingersWithoutAuthority} is true»lingering therein without authority «end if», «if {FailsToLeaveOnDemand} is true»fails to leave on the demand of the entitled person «end if» shall be punished with imprisonment for up to one year or a fine. (2) The offence is prosecuted only upon application.«end if»

ANNEXES

COMPUTABLES

[ProtectedSpace] = Dwelling is true or BusinessPremises is true or EnclosedProperty is true or EnclosedPublicRooms is true
[Leg1] = IntrudesUnlawfully is true and ProtectedSpace is true
[Leg2] = LingersWithoutAuthority is true and FailsToLeaveOnDemand is true and ProtectedSpace is true
[Trespass] = Leg1 is true or Leg2 is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
TRS-R01	ACT	Actor		IntrudesUnlawfully is true
TRS-R02	CONDITION	None		Dwelling is true
TRS-R03	CONDITION	None		BusinessPremises is true
TRS-R04	CONDITION	None		EnclosedProperty is true
TRS-R05	CONDITION	None		EnclosedPublicRooms is true
TRS-R06	ACT	Actor		LingersWithoutAuthority is true
TRS-R07	ACT	Actor		FailsToLeaveOnDemand is true
TRS-P0	PROHIBITION	Actor	not realise	not Trespass

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} unlawfully intrudes	Merkmal	{IntrudesUnlawfully}	TRS-R01	is true
the dwelling of another	Merkmal	{Dwelling}	TRS-R02	is true
the business premises of another	Merkmal	{BusinessPremises}	TRS-R03	is true

the enclosed property of another	Merkmal	{EnclosedProperty}	TRS-R04	is true
enclosed rooms designated for public purposes	Merkmal	{EnclosedPublicRooms}	TRS-R05	is true
{Actor} lingers therein without authority	Merkmal	{LingersWithoutAuthority}	TRS-R06	is true
{Actor} fails to leave on the demand of the entitled person	Merkmal	{FailsToLeaveOnDemand}	TRS-R07	is true
(2) application requirement	procedure	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{BusinessPremises}	Boolean	true / false / unknown	Session	the business premises of another
{Dwelling}	Boolean	true / false / unknown	Session	the dwelling of another
{EnclosedProperty}	Boolean	true / false / unknown	Session	the enclosed property of another
{EnclosedPublicRooms}	Boolean	true / false / unknown	Session	enclosed rooms designated for public purposes
{FailsToLeaveOnDemand}	Boolean	true / false / unknown	Session	{Actor} fails to leave on the demand of the entitled person
{IntrudesUnlawfully}	Boolean	true / false / unknown	Session	{Actor} unlawfully intrudes
{LingersWithoutAuthority}	Boolean	true / false / unknown	Session	{Actor} lingers therein without authority

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} unlawfully intrudes and (the dwelling of another or the business premises of another or the enclosed property of another or enclosed rooms designated for public purposes)) or ({Actor} lingers therein without authority and {Actor} fails to leave on the demand of the entitled person and (the dwelling of another or the business premises of another or the enclosed property of another or enclosed rooms designated for public purposes)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ProtectedSpace]	Dwelling, BusinessPremises, EnclosedProperty, EnclosedPublicRooms	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	IntrudesUnlawfully, ProtectedSpace	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	LingersWithoutAuthority, FailsToLeaveOnDemand, ProtectedSpace	false	Recomputes when any input changes; propagates into the composite.
[Trespass]	Leg1, Leg2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (TRS-P0)	[Trespass]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {BusinessPremises}
- └ {Dwelling}
- └ {EnclosedProperty}
- └ {EnclosedPublicRooms}
- └ {FailsToLeaveOnDemand}
- └ {IntrudesUnlawfully}
- └ {LingersWithoutAuthority}

↓

PHASE 2: evaluate act / intermediate computables

- └ [ProtectedSpace] = Dwelling is true or BusinessPremises is true or EnclosedProperty is true or EnclosedPublicRooms is true
- └ [Leg1] = IntrudesUnlawfully is true and ProtectedSpace is true
- └ [Leg2] = LingersWithoutAuthority is true and FailsToLeaveOnDemand is true and ProtectedSpace is true

↓

PHASE 3: evaluate the objective conditions

- └ [Trespass] = Leg1 is true or Leg2 is true

↓

VERDICT (PrimeRule)

- └ [Trespass] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [Trespass] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [Trespass] depends on [ProtectedSpace], [Leg1], [Leg2]; none refer back to [Trespass]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{BusinessPremises}	Element/Datum: the business premises of another.?	Boolean
Q3	Session	{Dwelling}	Element/Datum: the dwelling of another.?	Boolean
Q4	Session	{EnclosedProperty}	Element/Datum: the enclosed property of another.?	Boolean
Q5	Session	{EnclosedPublicRooms}	Element/Datum: enclosed rooms designated for public purposes.?	Boolean

Q6	Session	{FailsToLeaveOnDemand}	Element/Datum: {Actor} fails to leave on the demand of the entitled person.?	Boolean
Q7	Session	{IntrudesUnlawfully}	Element/Datum: {Actor} unlawfully intrudes.?	Boolean
Q8	Session	{LingersWithoutAuthority}	Element/Datum: {Actor} lingers therein without authority.?	Boolean

FLAGS

SCOPE Paragraph 1 whole: the intrusion leg and the lingering leg over the four protected spaces. Struck per the marked-up source: the penalty and (2).

TWO LEGS, SHARED SPACES The space catalogue is authored once in **[ProtectedSpace]** and consumed by both legs; in the lingering leg the failure to leave on demand is the conduct, the lingering its circumstance.

TREATMENT §123 is Operomise-tagged.

§125 · Breach of the peace

BreachOfThePeace · provenance St6B 125 · (1) whole encoded; (2) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Any person who participates, as a perpetrator or participant, in 1. acts of violence against persons or things, or 2. threats against persons of an act of violence, which are committed from a crowd with joined forces in a manner endangering public safety, or who exerts influence on the crowd in order to promote its readiness for such acts, shall be punished with imprisonment for up to three years or a fine. (2) In so far as the acts designated in paragraph 1 nos. 1 and 2 are subject to punishment under Section 113, Section 113(3) and (4) applies mutatis mutandis. This also applies in cases of Section 114 if the official act is an enforcement act within the meaning of Section 113(1).

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if BreachOfThePeace is true»(1) **{Actor}** who **«if {ParticipatesAsPerpetrator} is true»**participates as a perpetrator **«end if» «if {ParticipatesAsParticipant} is true»**or participant **«end if»** in 1. **«if {ViolenceAgainstPersons} is true»**acts of violence against persons **«end if» «if {ViolenceAgainstThings} is true»**or things **«end if»**, or 2. **«if {ThreatsOfViolence} is true»**threats against persons of an act of violence **«end if»**, which are committed **«if {FromCrowd} is true»**from a crowd **«end if» «if {WithJoinedForces} is true»**with joined forces **«end if» «if {EndangeringPublicSafety} is true»**in a manner endangering public safety **«end if»**, or who **«if {InfluencesCrowd} is true»**exerts influence on the crowd **«end if» «if {ActsToPromoteReadiness} is true»**in order to promote its readiness for such acts **«end if»** ~~shall be punished with imprisonment for up to three years or a fine. (2) In so far as the acts designated in paragraph 1 nos. 1 and 2 are subject to punishment under Section 113, Section 113(3) and (4) applies mutatis mutandis. This also applies in cases of Section 114 if the official act is an enforcement act within the meaning of Section 113(1).~~**«end if»**

ANNEXES

COMPUTABLES

[CrowdActs] = (**ViolenceAgainstPersons** is true or **ViolenceAgainstThings** is true or **ThreatsOfViolence** is true) and **FromCrowd** is true and **WithJoinedForces** is true and **EndangeringPublicSafety** is true

[Leg1] = (**ParticipatesAsPerpetrator** is true or **ParticipatesAsParticipant** is true) and **CrowdActs** is true

[Leg2] = **InfluencesCrowd** is true and **ActsToPromoteReadiness** is true

[BreachOfThePeace] = **Leg1** is true or **Leg2** is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BOP-R01	ACT	Actor		ParticipatesAsPerpetrator is true
BOP-R02	ACT	Actor		ParticipatesAsParticipant is true
BOP-R03	CONDITION	None		ViolenceAgainstPersons is true
BOP-R04	CONDITION	None		ViolenceAgainstThings is true
BOP-R05	CONDITION	None		ThreatsOfViolence is true
BOP-R06	CONDITION	None		FromCrowd is true
BOP-R07	CONDITION	None		WithJoinedForces is true
BOP-R08	CONDITION	None		EndangeringPublicSafety is true
BOP-R09	ACT	Actor		InfluencesCrowd is true
BOP-R10	ACT	Actor		ActsToPromoteReadiness is true
BOP-P0	PROHIBITION	Actor	not realise	not BreachOfThePeace

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} participates as a perpetrator	Merkmal	{ParticipatesAsPerpetrator}	BOP-R01	is true
{Actor} participates as a participant	Merkmal	{ParticipatesAsParticipant}	BOP-R02	is true
acts of violence against persons	Merkmal	{ViolenceAgainstPersons}	BOP-R03	is true
acts of violence against things	Merkmal	{ViolenceAgainstThings}	BOP-R04	is true
threats of acts of violence against persons	Merkmal	{ThreatsOfViolence}	BOP-R05	is true
the acts are committed from a crowd	Merkmal	{FromCrowd}	BOP-R06	is true
the acts are committed with joined forces	Merkmal	{WithJoinedForces}	BOP-R07	is true

the acts are committed in a manner endangering public safety	Merkmal	{EndangeringPublicSafety}	BOP - R08	is true
{Actor} exerts influence on the crowd	Merkmal	{InfluencesCrowd}	BOP - R09	is true
{Actor} acts in order to promote the crowd's readiness for such acts	Merkmal	{ActsToPromoteReadiness}	BOP - R10	is true
(2) Sections 113/114 bridge; §125a serious cases (Excluded)	procedure / grading	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ActsToPromoteReadiness}	Boolean	true / false / unknown	Session	{Actor} acts in order to promote the crowd's readiness for such acts
{EndangeringPublicSafety}	Boolean	true / false / unknown	Session	the acts are committed in a manner endangering public safety
{FromCrowd}	Boolean	true / false / unknown	Session	the acts are committed from a crowd
{InfluencesCrowd}	Boolean	true / false / unknown	Session	{Actor} exerts influence on the crowd
{ParticipatesAsParticipant}	Boolean	true / false / unknown	Session	{Actor} participates as a participant
{ParticipatesAsPerpetrator}	Boolean	true / false / unknown	Session	{Actor} participates as a perpetrator
{ThreatsOfViolence}	Boolean	true / false / unknown	Session	threats of acts of violence against persons
{ViolenceAgainstPersons}	Boolean	true / false / unknown	Session	acts of violence against persons
{ViolenceAgainstThings}	Boolean	true / false / unknown	Session	acts of violence against things
{WithJoinedForces}	Boolean	true / false / unknown	Session	the acts are committed with joined forces

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} participates as a perpetrator or {Actor} participates as a participant) and ((acts of violence against persons or acts of violence against things or threats of acts of violence against persons) and the acts are committed from a crowd and the acts are committed with joined forces and the acts are committed in a manner endangering public safety)) or ({Actor} exerts influence on the crowd and {Actor} acts in order to promote the crowd's readiness for such acts).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[CrowdActs]	ViolenceAgainstPersons, ViolenceAgainstThings, ThreatsOfViolence, FromCrowd, WithJoinedForces, EndangeringPublicSafety	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	ParticipatesAsPerpetrator, ParticipatesAsParticipant, CrowdActs	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	InfluencesCrowd, ActsToPromoteReadiness	false	Recomputes when any input changes; propagates into the composite.
[BreachOfThePeace]	Leg1, Leg2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BOP-P0)	[BreachOfThePeace]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {ActsToPromoteReadiness}
- └ {EndangeringPublicSafety}
- └ {FromCrowd}
- └ {InfluencesCrowd}
- └ {ParticipatesAsParticipant}
- └ {ParticipatesAsPerpetrator}
- └ {ThreatsOfViolence}
- └ {ViolenceAgainstPersons}
- └ {ViolenceAgainstThings}
- └ {WithJoinedForces}

↓

PHASE 2: evaluate act / intermediate computables

- └ [CrowdActs] = (ViolenceAgainstPersons is true or ViolenceAgainstThings is true or ThreatsOfViolence is true) and FromCrowd is true and WithJoinedForces is true and EndangeringPublicSafety is true
- └ [Leg1] = (ParticipatesAsPerpetrator is true or ParticipatesAsParticipant is true) and CrowdActs is true
- └ [Leg2] = InfluencesCrowd is true and ActsToPromoteReadiness is true

↓

PHASE 3: evaluate the objective conditions

- └ [BreachOfThePeace] = Leg1 is true or Leg2 is true

↓

VERDICT (PrimeRule)

- └ [BreachOfThePeace] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [BreachOfThePeace] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [BreachOfThePeace] depends on [CrowdActs], [Leg1], [Leg2]; none refer back to [BreachOfThePeace]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
---	---------	----------	-------------------	-------

Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ActsToPromoteReadiness}	Element/Datum: {Actor} acts in order to promote the crowd's readiness for such acts.?	Boolean
Q3	Session	{EndangeringPublicSafety}	Element/Datum: the acts are committed in a manner endangering public safety.?	Boolean
Q4	Session	{FromCrowd}	Element/Datum: the acts are committed from a crowd.?	Boolean
Q5	Session	{InfluencesCrowd}	Element/Datum: {Actor} exerts influence on the crowd.?	Boolean
Q6	Session	{ParticipatesAsParticipant}	Element/Datum: {Actor} participates as a participant.?	Boolean
Q7	Session	{ParticipatesAsPerpetrator}	Element/Datum: {Actor} participates as a perpetrator.?	Boolean
Q8	Session	{ThreatsOfViolence}	Element/Datum: threats of acts of violence against persons.?	Boolean
Q9	Session	{ViolenceAgainstPersons}	Element/Datum: acts of violence against persons.?	Boolean
Q10	Session	{ViolenceAgainstThings}	Element/Datum: acts of violence against things.?	Boolean
Q11	Session	{WithJoinedForces}	Element/Datum: the acts are committed with joined forces.?	Boolean

FLAGS

SCOPE Paragraph 1 whole: the participation leg over the crowd-act qualification and the influence leg with its purpose. Struck per the marked-up source: (2). §125a is Excluded (grading).

CROWD QUALIFICATION “aus einer Menschenmenge in einer die öffentliche Sicherheit gefährdenden Weise mit vereinten Kräften” qualifies the acts, not the participant; carried as three circumstance variables in [CrowdActs] conjoined over the act disjunction.

PURPOSE RETAINED (INFLUENCE LEG) “um ihre Bereitschaft zu solchen Handlungen zu fördern” is live: influencing a crowd is innocuous without it.

TREATMENT §125 is Operomise-tagged.

§126a · Dangerous dissemination of personal data

DisseminationOfPersonalData · provenance StGB 126a · (1) whole encoded; (2)-(3) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Any person who publicly, in an assembly or by disseminating content (Section 11(3)) disseminates personal data of another person in a manner which is capable of and, by the circumstances, intended to expose that person or a person close to them to the danger of 1. a serious criminal offence directed against them, or 2. another unlawful act directed against them against sexual self-determination, bodily integrity, personal freedom or against a thing of significant value, shall be punished with imprisonment for up to two years or a fine. (2) If the data are not generally accessible, the penalty shall be imprisonment for up to three years or a fine. (3) Section 86(4) applies mutatis mutandis.

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if DisseminationOfPersonalData is true»(1) {Actor} who «if {Publicly} is true»publicly «end if» «if {InAssembly} is true», in an assembly «end if» «if {ByDisseminatingContent} is true»or by disseminating content (Section 11(3)) «end if» «if {DisseminatesPersonalData} is true»disseminates personal data of another person «end if» in a manner which is «if {MannerCapable} is true»capable of «end if» and, by the circumstances, «if {MannerIntended} is true»intended «end if» to expose «if {TargetPerson} is true»that person «end if» «if {CloselyAssociatedPerson} is true»or a person close to them «end if» to the danger of 1. «if {DangerOfSeriousOffence} is true»a serious criminal offence directed against them «end if», or 2. another unlawful act directed against them «if {DangerOfActAgainstSexualSelfDetermination} is true»against sexual self-determination «end if» «if {DangerOfActAgainstBodilyIntegrity} is true», bodily integrity «end if» «if {DangerOfActAgainstPersonalFreedom} is true», personal freedom «end if» «if {DangerOfActAgainstValuableThing} is true»or against a thing of significant value «end if» shall be punished with imprisonment for up to two years or a fine. (2) If the data are not generally accessible, the penalty shall be imprisonment for up to three years or a fine. (3) Section 86(4) applies mutatis mutandis.«end if»

ANNEXES

COMPUTABLES

[PublicMode] = Publicly is true or InAssembly is true or ByDisseminatingContent is true

[DangerContent] = DangerOfSeriousOffence is true or DangerOfActAgainstSexualSelfDetermination is true or DangerOfActAgainstBodilyIntegrity is true or DangerOfActAgainstPersonalFreedom is true or DangerOfActAgainstValuableThing is true

[ExposedPerson] = TargetPerson is true or CloselyAssociatedPerson is true

[DisseminationOfPersonalData] = PublicMode is true and DisseminatesPersonalData is true and MannerCapable is true and MannerIntended is true and ExposedPerson is true and DangerContent is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
DPD-R01	CONDITION	None		Publicly is true
DPD-R02	CONDITION	None		InAssembly is true
DPD-R03	CONDITION	None		ByDisseminatingContent is true
DPD-R04	ACT	Actor		DisseminatesPersonalData is true
DPD-R05	CONDITION	None		MannerCapable is true
DPD-R06	CONDITION	None		MannerIntended is true
DPD-R07	CONDITION	None		TargetPerson is true
DPD-R08	CONDITION	None		CloselyAssociatedPerson is true

DPD-R09	CONDITION	None		DangerOfSeriousOffence is true
DPD-R10	CONDITION	None		DangerOfActAgainstSexualSelfDetermination is true
DPD-R11	CONDITION	None		DangerOfActAgainstBodilyIntegrity is true
DPD-R12	CONDITION	None		DangerOfActAgainstPersonalFreedom is true
DPD-R13	CONDITION	None		DangerOfActAgainstValuableThing is true
DPD-P0	PROHIBITION	Actor	not realise	not DisseminationOfPersonalData

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
publicly	Merkmal	{Publicly}	DPD-R01	is true
in an assembly	Merkmal	{InAssembly}	DPD-R02	is true
by disseminating content (Section 11(3))	Merkmal	{ByDisseminatingContent}	DPD-R03	is true
{Actor} disseminates personal data of another person	Merkmal	{DisseminatesPersonalData}	DPD-R04	is true
the manner of dissemination is capable of exposing the person to the danger	Merkmal	{MannerCapable}	DPD-R05	is true
the manner of dissemination is by the circumstances intended to expose the person to the danger	Merkmal	{MannerIntended}	DPD-R06	is true
the danger is directed at that person	Merkmal	{TargetPerson}	DPD-R07	is true
the danger is directed at a person close to that person	Merkmal	{CloselyAssociatedPerson}	DPD-R08	is true
the danger of a serious criminal offence directed against them	Merkmal	{DangerOfSeriousOffence}	DPD-R09	is true
the danger of an unlawful act against sexual self-determination	Merkmal	{DangerOfActAgainstSexualSelfDetermination}	DPD-R10	is true
the danger of an unlawful act against bodily integrity	Merkmal	{DangerOfActAgainstBodilyIntegrity}	DPD-R11	is true
the danger of an unlawful act against personal freedom	Merkmal	{DangerOfActAgainstPersonalFreedom}	DPD-R12	is true
the danger of an unlawful act against a thing of significant value	Merkmal	{DangerOfActAgainstValuableThing}	DPD-R13	is true
(2) non-accessible-data grading; (3) Section 86(4) bridge	grading / bridge	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ByDisseminatingContent}	Boolean	true / false / unknown	Session	by disseminating content (Section 11(3))
{CloselyAssociatedPerson}	Boolean	true / false / unknown	Session	the danger is directed at a person close to that person
{DangerOfActAgainstBodilyIntegrity}	Boolean	true / false / unknown	Session	the danger of an unlawful act against bodily integrity
{DangerOfActAgainstPersonalFreedom}	Boolean	true / false / unknown	Session	the danger of an unlawful act against personal freedom
{DangerOfActAgainstSexualSelfDetermination}	Boolean	true / false / unknown	Session	the danger of an unlawful act against sexual self-determination
{DangerOfActAgainstValuableThing}	Boolean	true / false / unknown	Session	the danger of an unlawful act against a thing of significant value
{DangerOfSeriousOffence}	Boolean	true / false / unknown	Session	the danger of a serious criminal offence directed against them
{DisseminatesPersonalData}	Boolean	true / false / unknown	Session	{Actor} disseminates personal data of another person
{InAssembly}	Boolean	true / false / unknown	Session	in an assembly
{MannerCapable}	Boolean	true / false / unknown	Session	the manner of dissemination is capable of exposing the person to the danger
{MannerIntended}	Boolean	true / false / unknown	Session	the manner of dissemination is by the circumstances intended to expose the person to the danger
{Publicly}	Boolean	true / false / unknown	Session	publicly
{TargetPerson}	Boolean	true / false / unknown	Session	the danger is directed at that person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (publicly or in an assembly or by disseminating content (Section 11(3))) and {Actor} disseminates personal data of another person and the manner of dissemination is capable of exposing the person to the danger and the manner of dissemination is by the circumstances intended to expose the person to the danger and (the danger is directed at that person or the danger is directed at a person close to that person) and (the danger of a serious criminal offence directed against them

or the danger of an unlawful act against sexual self-determination or the danger of an unlawful act against bodily integrity or the danger of an unlawful act against personal freedom or the danger of an unlawful act against a thing of significant value).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[PublicMode]	Publicly, InAssembly, ByDisseminatingContent	false	Recomputes when any input changes; propagates into the composite.
[DangerContent]	DangerOfSeriousOffence, DangerOfActAgainstSexualSelfDetermination, DangerOfActAgainstBodilyIntegrity, DangerOfActAgainstPersonalFreedom, DangerOfActAgainstValuableThing	false	Recomputes when any input changes; propagates into the composite.
[ExposedPerson]	TargetPerson, CloselyAssociatedPerson	false	Recomputes when any input changes; propagates into the composite.
[DisseminationOfPersonalData]	PublicMode, DisseminatesPersonalData, MannerCapable, MannerIntended, ExposedPerson, DangerContent	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (DPD-P0)	[DisseminationOfPersonalData]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Actor}

{ByDisseminatingContent}

{CloselyAssociatedPerson}

{DangerOfActAgainstBodilyIntegrity}

{DangerOfActAgainstPersonalFreedom}

{DangerOfActAgainstSexualSelfDetermination}

{DangerOfActAgainstValuableThing}

{DangerOfSeriousOffence}

{DisseminatesPersonalData}

{InAssembly}

{MannerCapable}

{MannerIntended}

{Publicly}

{TargetPerson}

↓

PHASE 2: evaluate act / intermediate computables

[PublicMode] = Publicly is true or InAssembly is true or ByDisseminatingContent is true

[DangerContent] = DangerOfSeriousOffence is true or DangerOfActAgainstSexualSelfDetermination is true or DangerOfActAgainstBodilyIntegrity is true or DangerOfActAgainstPersonalFreedom is true or DangerOfActAgainstValuableThing is true

[ExposedPerson] = TargetPerson is true or CloselyAssociatedPerson is true

↓

PHASE 3: evaluate the objective conditions

[DisseminationOfPersonalData] = PublicMode is true and DisseminatesPersonalData is true and MannerCapable is true and MannerIntended is true and ExposedPerson is true and DangerContent is true

↓

VERDICT (PrimeRule)

[DisseminationOfPersonalData] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[DisseminationOfPersonalData] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [DisseminationOfPersonalData] depends on [PublicMode], [DangerContent], [ExposedPerson]; none refer back to [DisseminationOfPersonalData]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ByDisseminatingContent}	Element/Datum: by disseminating content (Section 11(3)).?	Boolean
Q3	Session	{CloselyAssociatedPerson}	Element/Datum: the danger is directed at a person close to that person.?	Boolean
Q4	Session	{DangerOfActAgainstBodilyIntegrity}	Element/Datum: the danger of an unlawful act against bodily integrity.?	Boolean
Q5	Session	{DangerOfActAgainstPersonalFreedom}	Element/Datum: the danger of an unlawful act against personal freedom.?	Boolean
Q6	Session	{DangerOfActAgainstSexualSelfDetermination}	Element/Datum: the danger of an unlawful act against sexual self-determination.?	Boolean
Q7	Session	{DangerOfActAgainstValuableThing}	Element/Datum: the danger of an unlawful act against a thing of significant value.?	Boolean
Q8	Session	{DangerOfSeriousOffence}	Element/Datum: the danger of a serious criminal offence directed against them.?	Boolean
Q9	Session	{DisseminatesPersonalData}	Element/Datum: {Actor} disseminates personal data of another person.?	Boolean
Q10	Session	{InAssembly}	Element/Datum: in an assembly.?	Boolean
Q11	Session	{MannerCapable}	Element/Datum: the manner of dissemination is capable of exposing the person to the danger.?	Boolean
Q12	Session	{MannerIntended}	Element/Datum: the manner of dissemination is by the circumstances intended to expose the person to the danger.?	Boolean

Q13	Session	{Publicly}	Element/Datum: publicly.?	Boolean
Q14	Session	{TargetPerson}	Element/Datum: the danger is directed at that person.?	Boolean

FLAGS

- SCOPE** Paragraph 1 whole: the three public modes, the dissemination conduct, the capable-and-intended manner pair, the two exposed persons and the five danger contents. Struck per the marked-up source: (2) and (3).
- CAPABLE AND INTENDED** “geeignet und nach den Umständen bestimmt” is a conjunction: both the objective capability and the circumstantial determination of the manner must hold, carried as the {MannerCapable} and {MannerIntended} pair.
- TREATMENT** §126a is Operomise-tagged; §126 is Excluded, so its threat catalogue is not consumed here.

§127 · Operation of criminal trading platforms on the internet

CriminalTradingPlatforms · provenance StGB 127 · (1) s.1 and (2) encoded; catalogue, (3)-(4) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who operates a trading platform on the internet whose purpose is directed at enabling or promoting the commission of unlawful acts shall be punished with imprisonment for up to five years or a fine, unless the act is subject to a more severe penalty under other provisions. Unlawful acts within the meaning of sentence 1 are: 1. serious criminal offences, 2. misdemeanours under [a catalogue of provisions of this Code and of the Anti-Doping Act, the Narcotics Act, the Precursor Monitoring Act, the New Psychoactive Substances Act, the Medicinal Products Act, the Weapons Act, the Explosives Act, the Precursors Act, the Cultural Property Protection Act, the Trade Mark Act and the Design Act]. (2) A trading platform on the internet within the meaning of this provision is any virtual infrastructure, in the freely accessible as well as in the technically access-restricted area of the internet, which offers the opportunity to offer or to exchange people, goods, services or content (Section 11(3)). (3) Imprisonment for a term of six months to ten years shall be imposed on anyone who in the case of paragraph 1 acts on a commercial basis or as a member of a gang formed for the continued commission of such acts. (4) Imprisonment for a term of one to ten years shall be imposed on anyone who, in committing an act under paragraph 1, intends or knows that the trading platform has the purpose of enabling or promoting serious criminal offences.	«if CriminalTradingPlatforms is true»(1) {Actor} who «if {OperatesPlatform} is true»operates a trading platform on the internet «end if» whose purpose is directed at «if {PurposeDirectedAtEnabling} is true»enabling «end if» «if {PurposeDirectedAtPromoting} is true»or promoting «end if» the commission of unlawful acts shall be punished with imprisonment for up to five years or a fine, unless the act is subject to a more severe penalty under other provisions. Unlawful acts within the meaning of sentence 1 are: 1. serious criminal offences, 2. misdemeanours under the catalogue of provisions of this Code and of the Anti-Doping Act, the Narcotics Act, the Precursor Monitoring Act, the New Psychoactive Substances Act, the Medicinal Products Act, the Weapons Act, the Explosives Act, the Precursors Act, the Cultural Property Protection Act, the Trade Mark Act and the Design Act. «if [TradingPlatform] is true»(2) A trading platform on the internet within the meaning of this provision is «if {VirtualInfrastructure} is true»any virtual infrastructure «end if», «if {FreelyAccessibleArea} is true»in the freely accessible «end if» «if {AccessRestrictedArea} is true»as well as in the technically access-restricted area of the internet «end if», which offers the opportunity «if {OffersOpportunityToOffer} is true»to offer «end if» «if {OffersOpportunityToExchange} is true»or to exchange «end if» «if {People} is true»people «end if» «if {Goods} is true», goods «end if» «if {Services} is true», services «end if» «if {Content} is true»or content (Section 11(3)) «end if» «end if». (3) Imprisonment for a term of six months to ten years shall be imposed on anyone who in the case of paragraph 1 acts on a commercial basis or as a member of a gang formed for the continued commission of such acts. (4) Imprisonment for a term of one to ten years shall be imposed on anyone who, in committing an act under paragraph 1, intends or knows that the trading platform has the purpose of enabling or promoting serious criminal offences.«end if»

ANNEXES

COMPUTABLES

[TradingPlatform] = VirtualInfrastructure is true and (FreelyAccessibleArea is true or AccessRestrictedArea is true) and (OffersOpportunityToOffer is true or OffersOpportunityToExchange is true) and (People is true or Goods is true or Services is true or Content is true)

[CriminalTradingPlatforms] = OperatesPlatform is true and TradingPlatform is true and (PurposeDirectedAtEnabling is true or PurposeDirectedAtPromoting is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
CTP-R01	ACT	Actor		OperatesPlatform is true
CTP-R02	CONDITION	None		PurposeDirectedAtEnabling is true
CTP-R03	CONDITION	None		PurposeDirectedAtPromoting is true
CTP-R04	CONDITION	None		VirtualInfrastructure is true
CTP-R05	CONDITION	None		FreelyAccessibleArea is true
CTP-R06	CONDITION	None		AccessRestrictedArea is true
CTP-R07	CONDITION	None		OffersOpportunityToOffer is true
CTP-R08	CONDITION	None		OffersOpportunityToExchange is true
CTP-R09	CONDITION	None		People is true

CTP-R10	CONDITION	None		Goods is true
CTP-R11	CONDITION	None		Services is true
CTP-R12	CONDITION	None		Content is true
CTP-R00	CONDITION	None	definition (paragraph 2, live): a trading platform on the internet is any virtual infrastructure, in the freely accessible or the technically access-restricted area of the internet, offering the opportunity to offer or exchange people, goods, services or content; authored as [TradingPlatform]	TradingPlatform is true
CTP-P0	PROHIBITION	Actor	not realise	not CriminalTradingPlatforms

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} operates a trading platform on the internet	Merkmal	{OperatesPlatform}	CTP-R01	is true
the platform's purpose is directed at enabling the commission of unlawful acts	Merkmal	{PurposeDirectedAtEnabling}	CTP-R02	is true
the platform's purpose is directed at promoting the commission of unlawful acts	Merkmal	{PurposeDirectedAtPromoting}	CTP-R03	is true
a virtual infrastructure on the internet	Merkmal	{VirtualInfrastructure}	CTP-R04	is true
in the freely accessible area of the internet	Merkmal	{FreelyAccessibleArea}	CTP-R05	is true
in the technically access-restricted area of the internet	Merkmal	{AccessRestrictedArea}	CTP-R06	is true
the infrastructure offers the opportunity to offer the listed items	Merkmal	{OffersOpportunityToOffer}	CTP-R07	is true
the infrastructure offers the opportunity to exchange the listed items	Merkmal	{OffersOpportunityToExchange}	CTP-R08	is true
people	Merkmal	{People}	CTP-R09	is true
goods	Merkmal	{Goods}	CTP-R10	is true
services	Merkmal	{Services}	CTP-R11	is true
content (Section 11(3))	Merkmal	{Content}	CTP-R12	is true
(1) sentence 2 catalogue with subsidiarity; (3)–(4) aggravations	catalogue / grading	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{AccessRestrictedArea}	Boolean	true / false / unknown	Session	in the technically access-restricted area of the internet
{Actor}	Reference	–	Session	any person (the actor)
{Content}	Boolean	true / false / unknown	Session	content (Section 11(3))
{FreelyAccessibleArea}	Boolean	true / false / unknown	Session	in the freely accessible area of the internet
{Goods}	Boolean	true / false / unknown	Session	goods
{OffersOpportunityToExchange}	Boolean	true / false / unknown	Session	the infrastructure offers the opportunity to exchange the listed items
{OffersOpportunityToOffer}	Boolean	true / false / unknown	Session	the infrastructure offers the opportunity to offer the listed items
{OperatesPlatform}	Boolean	true / false / unknown	Session	{Actor} operates a trading platform on the internet
{People}	Boolean	true / false / unknown	Session	people
{PurposeDirectedAtEnabling}	Boolean	true / false / unknown	Session	the platform's purpose is directed at enabling the commission of unlawful acts
{PurposeDirectedAtPromoting}	Boolean	true / false / unknown	Session	the platform's purpose is directed at promoting the commission of unlawful acts
{Services}	Boolean	true / false / unknown	Session	services
{VirtualInfrastructure}	Boolean	true / false / unknown	Session	a virtual infrastructure on the internet

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} operates a trading platform on the internet and (a virtual infrastructure on the internet and (in the freely accessible area of the internet or in the technically access-restricted area of the internet) and (the infrastructure offers the opportunity to offer the listed items or the infrastructure offers the opportunity to exchange the listed items) and (people or goods or services or content (Section 11(3)))) and (the platform's purpose is directed at enabling the commission of unlawful acts or the platform's purpose is directed at promoting the commission of unlawful acts).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[TradingPlatform]	VirtualInfrastructure, FreelyAccessibleArea, AccessRestrictedArea, OffersOpportunityToOffer, OffersOpportunityToExchange, People, Goods, Services, Content	false	Recomputes when any input changes; propagates into the composite.
[CriminalTradingPlatforms]	OperatesPlatform, TradingPlatform, PurposeDirectedAtEnabling, PurposeDirectedAtPromoting	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (CTP-P0)	[CriminalTradingPlatforms]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {AccessRestrictedArea}
- └ {Actor}

```
└ {Content}
└ {FreelyAccessibleArea}
└ {Goods}
└ {OffersOpportunityToExchange}
└ {OffersOpportunityToOffer}
└ {OperatesPlatform}
└ {People}
└ {PurposeDirectedAtEnabling}
└ {PurposeDirectedAtPromoting}
└ {Services}
└ {VirtualInfrastructure}
↓
PHASE 2: evaluate act / intermediate computables
└ [TradingPlatform] = VirtualInfrastructure is true and (FreelyAccessibleArea is true or AccessRestrictedArea is true) and (OffersOpportunityToOffer is true or OffersOpportunityToExchange is true) and (People is true or Goods is true or Services is true or Content is true)
↓
PHASE 3: evaluate the objective conditions
└ [CriminalTradingPlatforms] = OperatesPlatform is true and TradingPlatform is true and (PurposeDirectedAtEnabling is true or PurposeDirectedAtPromoting is true)
↓
VERDICT (PrimeRule)
└ [CriminalTradingPlatforms] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└ [CriminalTradingPlatforms] is false → not realised
```

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [CriminalTradingPlatforms] depends on [TradingPlatform]; none refer back to [CriminalTradingPlatforms]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{AccessRestrictedArea}	Element/Datum: in the technically access-restricted area of the internet.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{Content}	Element/Datum: content (Section 11(3)).?	Boolean
Q4	Session	{FreelyAccessibleArea}	Element/Datum: in the freely accessible area of the internet.?	Boolean
Q5	Session	{Goods}	Element/Datum: goods.?	Boolean
Q6	Session	{OffersOpportunityToExchange}	Element/Datum: the infrastructure offers the opportunity to exchange the listed items.?	Boolean
Q7	Session	{OffersOpportunityToOffer}	Element/Datum: the infrastructure offers the opportunity to offer the listed items.?	Boolean
Q8	Session	{OperatesPlatform}	Element/Datum: {Actor} operates a trading platform on the internet.?	Boolean
Q9	Session	{People}	Element/Datum: people.?	Boolean
Q10	Session	{PurposeDirectedAtEnabling}	Element/Datum: the platform's purpose is directed at enabling the commission of unlawful acts.?	Boolean
Q11	Session	{PurposeDirectedAtPromoting}	Element/Datum: the platform's purpose is directed at promoting the commission of unlawful acts.?	Boolean
Q12	Session	{Services}	Element/Datum: services.?	Boolean
Q13	Session	{VirtualInfrastructure}	Element/Datum: a virtual infrastructure on the internet.?	Boolean

FLAGS

- SCOPE** Paragraph 1 sentence 1 and the whole of paragraph 2. Struck per the marked-up source: the penalty with its subsidiarity clause, the entire sentence-2 catalogue of qualifying unlawful acts, (3) and (4).
- STRUCK CATALOGUE (RECORDED)** With the catalogue struck, “rechtswidrige Taten” stays at its general meaning: whether a given act falls within the struck statutory catalogue resolves as an input. The same treatment recurs in §129’s struck severity threshold, §138’s struck offence list and §140’s struck references.
- LIVE DEFINITION (PARAGRAPH 2)** The platform definition is live and authored as [TradingPlatform], rule CTP-R80, consumed by the offence composite; the four tradeable kinds and the two access areas each stand in their own gated block.
- TREATMENT** §127 is Operomise-tagged.

§128 · Formation of armed groups

FormationOfArmedGroups · provenance StGB 128 · whole encoded; penalty struck

SOURCE (ENGLISH, UNOFFICIAL)

Any person who, without authorisation, forms or commands a group that has at its disposal weapons or other dangerous tools, or who joins such a group, supplies it with weapons or money, or otherwise supports it, shall be punished with imprisonment for up to two years or a fine.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if FormationOfArmedGroups is true»{Actor} who, «if {WithoutAuthorisation} is true»without authorisation «end if», «if {Forms} is true»forms «end if» «if {Commands} is true»or commands «end if» «if {ArmedGroup} is true»a group that has at its disposal weapons or other dangerous tools «end if», or who «if {Joins} is true»joins such a group «end if», «if {SuppliesWithWeapons} is true»supplies it with weapons «end if» «if {SuppliesWithMoney} is true»or money «end if», or «if {OtherwiseSupports} is true»otherwise supports it «end if» ~~shall be punished with imprisonment for up to two years or a fine.~~«end if»

ANNEXES

COMPUTABLES

[Conduct] = Forms is true or Commands is true or Joins is true or SuppliesWithWeapons is true or SuppliesWithMoney is true or OtherwiseSupports is true

[FormationOfArmedGroups] = WithoutAuthorisation is true and ArmedGroup is true and Conduct is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
FAG-R01	CONDITION	None		WithoutAuthorisation is true
FAG-R02	CONDITION	None		ArmedGroup is true
FAG-R03	ACT	Actor		Forms is true
FAG-R04	ACT	Actor		Commands is true
FAG-R05	ACT	Actor		Joins is true
FAG-R06	ACT	Actor		SuppliesWithWeapons is true
FAG-R07	ACT	Actor		SuppliesWithMoney is true
FAG-R08	ACT	Actor		OtherwiseSupports is true
FAG-P0	PROHIBITION	Actor	not realise	not FormationOfArmedGroups

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} acts without authorisation	Merkmal	{WithoutAuthorisation}	FAG-R01	is true
a group that has weapons at its disposal	Merkmal	{ArmedGroup}	FAG-R02	is true
{Actor} forms the group	Merkmal	{Forms}	FAG-R03	is true
{Actor} commands the group	Merkmal	{Commands}	FAG-R04	is true
{Actor} joins the group	Merkmal	{Joins}	FAG-R05	is true
{Actor} supplies the group with weapons	Merkmal	{SuppliesWithWeapons}	FAG-R06	is true
{Actor} supplies the group with money	Merkmal	{SuppliesWithMoney}	FAG-R07	is true
{Actor} otherwise supports the group	Merkmal	{OtherwiseSupports}	FAG-R08	is true
penalty	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ArmedGroup}	Boolean	true / false / unknown	Session	a group that has weapons at its disposal
{Commands}	Boolean	true / false / unknown	Session	{Actor} commands the group
{Forms}	Boolean	true / false / unknown	Session	{Actor} forms the group
{Joins}	Boolean	true / false / unknown	Session	{Actor} joins the group
{OtherwiseSupports}	Boolean	true / false / unknown	Session	{Actor} otherwise supports the group
{SuppliesWithMoney}	Boolean	true / false / unknown	Session	{Actor} supplies the group with money
{SuppliesWithWeapons}	Boolean	true / false / unknown	Session	{Actor} supplies the group with weapons
{WithoutAuthorisation}	Boolean	true / false / unknown	Session	{Actor} acts without authorisation

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} acts without authorisation and a group that has weapons at its disposal and ({Actor} forms the group or {Actor} commands the group or {Actor} joins the group or {Actor} supplies the group with weapons or {Actor} supplies the group with money or {Actor} otherwise supports the group).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Conduct]	Forms, Commands, Joins, SuppliesWithWeapons, SuppliesWithMoney, OtherwiseSupports	false	Recomputes when any input changes; propagates into the composite.
[FormationOfArmedGroups]	WithoutAuthorisation, ArmedGroup, Conduct	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (FAG-P0)	[FormationOfArmedGroups]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {ArmedGroup}
- └ {Commands}
- └ {Forms}
- └ {Joins}
- └ {OtherwiseSupports}
- └ {SuppliesWithMoney}
- └ {SuppliesWithWeapons}

↓

PHASE 2: evaluate act / intermediate computables

└─ [Conduct] = Forms is true or Commands is true or Joins is true or SuppliesWithWeapons is true or SuppliesWithMoney is true or OtherwiseSupports is true

↓

PHASE 3: evaluate the objective conditions

└─ [FormationOfArmedGroups] = WithoutAuthorisation is true and ArmedGroup is true and Conduct is true

↓

VERDICT (PrimeRule)

└─ [FormationOfArmedGroups] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

└─ [FormationOfArmedGroups] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [FormationOfArmedGroups] depends on [Conduct]; none refer back to [FormationOfArmedGroups]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ArmedGroup}	Element/Datum: a group that has weapons at its disposal.?	Boolean
Q3	Session	{Commands}	Element/Datum: {Actor} commands the group.?	Boolean
Q4	Session	{Forms}	Element/Datum: {Actor} forms the group.?	Boolean
Q5	Session	{Joins}	Element/Datum: {Actor} joins the group.?	Boolean
Q6	Session	{OtherwiseSupports}	Element/Datum: {Actor} otherwise supports the group.?	Boolean
Q7	Session	{SuppliesWithMoney}	Element/Datum: {Actor} supplies the group with money.?	Boolean
Q8	Session	{SuppliesWithWeapons}	Element/Datum: {Actor} supplies the group with weapons.?	Boolean
Q9	Session	{WithoutAuthorisation}	Element/Datum: {Actor} acts without authorisation.?	Boolean

FLAGS

- SCOPE The single sentence; only the penalty struck. Six conducts over the armed-group object and the without-authorisation qualifier.
- GROUP, NOT VEREINIGUNG The object is a “Gruppe”, not a §129(2) Vereinigung; the §129 definition scope is not consumed here, faithful to the drafting.
- TREATMENT §128 is Operomise-tagged.

§129 · Formation of criminal organisations

CriminalOrganisations · provenance StGB 129 · (1)-(2) encoded; threshold, (3)-(7) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Imprisonment for up to five years or a fine shall be imposed on anyone who founds an association or participates in an association as a member, whose purpose or activity is directed at the commission of criminal offences punishable by a maximum term of imprisonment of at least two years. Imprisonment for up to three years or a fine shall be imposed on anyone who supports such an association or recruits members or supporters for it. (2) An association is an organised union of more than two persons, designed for a longer duration, independent of a definition of roles of its members, of the continuity of membership and of the development of its structure, for the pursuit of an overriding common interest. (3) Paragraph 1 does not apply: 1. where the association is a political party which the Federal Constitutional Court has not declared unconstitutional, 2. where the commission of offences is only a purpose or activity of subordinate significance, or 3. in so far as the purposes or activity of the association concern offences under Sections 84 to 87. (4) The attempt to found an association designated in paragraph 1 sentence 1 and paragraph 2 is punishable. (5) In particularly serious cases of paragraph 1 sentence 1, the penalty shall be imprisonment for a term of six months to five years; a particularly serious case generally exists where the offender is one of the ringleaders or persons behind the association; with further aggravation for associations directed at the offences named in Section 100b(2) of the Code of Criminal Procedure. (6) The court may dispense with punishment under paragraphs 1 and 4 for participants whose guilt is minor and whose participation is of subordinate significance. (7) The court may mitigate the penalty or dispense with punishment where the offender voluntarily and earnestly endeavours to prevent the continued existence of the association or the commission of an offence corresponding to its aims, or voluntarily discloses their knowledge in time for planned offences to be prevented.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

~~«if CriminalOrganisations is true»~~(1) ~~Imprisonment for up to five years or a fine shall be imposed on {Actor} who «if {Founds} is true»~~founds an association ~~«end if» «if {ParticipatesAsMember} is true»~~or participates in an association as a member ~~«end if», whose «if {PurposeDirectedAtOffences} is true»~~purpose ~~«end if» «if {ActivityDirectedAtOffences} is true»~~or activity ~~«end if»~~ is directed at the commission of criminal offences ~~punishable by a maximum term of imprisonment of at least two years. Imprisonment for up to three years or a fine shall be imposed on {Actor} who «if {Supports} is true»~~supports such an association ~~«end if» or «if {RecruitsMembers} is true»~~recruits members ~~«end if» «if {RecruitsSupporters} is true»~~or supporters ~~«end if» for it. «if [Association] is true»~~(2) An association is ~~«if {OrganisedAssociation} is true»~~an organised union of more than two persons ~~«end if», «if {LongerDuration} is true»~~designed for a longer duration ~~«end if», «if {IndependentOfRoles} is true»~~independent of a definition of roles of its members ~~«end if» «if {IndependentOfContinuity} is true»,~~ of the continuity of membership ~~«end if» «if {IndependentOfStructure} is true»~~and of the development of its structure ~~«end if», «if {OverridingCommonInterest} is true»~~for the pursuit of an overriding common interest ~~«end if» «end if»~~. (3) ~~Paragraph 1 does not apply: 1. where the association is a political party which the Federal Constitutional Court has not declared unconstitutional, 2. where the commission of offences is only a purpose or activity of subordinate significance, or 3. in so far as the purposes or activity of the association concern offences under Sections 84 to 87. (4) The attempt to found an association designated in paragraph 1 sentence 1 and paragraph 2 is punishable. (5) In particularly serious cases of paragraph 1 sentence 1, the penalty shall be imprisonment for a term of six months to five years; a particularly serious case generally exists where the offender is one of the ringleaders or persons behind the association; with further aggravation for associations directed at the offences named in Section 100b(2) of the Code of Criminal Procedure. (6) The court may dispense with punishment under paragraphs 1 and 4 for participants whose guilt is minor and whose participation is of subordinate significance. (7) The court may mitigate~~

the penalty or dispense with punishment where the offender voluntarily and earnestly endeavours to prevent the continued existence of the association or the commission of an offence corresponding to its aims, or voluntarily discloses their knowledge in time for planned offences to be prevented.«end if»

ANNEXES

COMPUTABLES

```
[Association] = OrganisedAssociation is true and LongerDuration is true and IndependentOfRoles is true and IndependentOfContinuity is true and IndependentOfStructure is true and OverridingCommonInterest is true

[CriminalDirection] = PurposeDirectedAtOffences is true or ActivityDirectedAtOffences is true

[Leg2] = (Supports is true or RecruitsMembers is true or RecruitsSupporters is true) and Association is true and CriminalDirection is true

[Leg1] = (Founds is true or ParticipatesAsMember is true) and Association is true and CriminalDirection is true

[CriminalOrganisations] = Leg1 is true or Leg2 is true
```

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
CR0-R01	ACT	Actor		Founds is true
CR0-R02	ACT	Actor		ParticipatesAsMember is true
CR0-R03	CONDITION	None		PurposeDirectedAtOffences is true
CR0-R04	CONDITION	None		ActivityDirectedAtOffences is true
CR0-R05	ACT	Actor		Supports is true
CR0-R06	ACT	Actor		RecruitsMembers is true
CR0-R07	ACT	Actor		RecruitsSupporters is true
CR0-R08	CONDITION	None		OrganisedAssociation is true
CR0-R09	CONDITION	None		LongerDuration is true
CR0-R10	CONDITION	None		IndependentOfRoles is true
CR0-R11	CONDITION	None		IndependentOfContinuity is true
CR0-R12	CONDITION	None		IndependentOfStructure is true
CR0-R13	CONDITION	None		OverridingCommonInterest is true
CR0-R00	CONDITION	None	definition (paragraph 2, live): an association is an organised union of more than two persons, designed for a longer duration, independent of a definition of roles of its members, of the continuity of membership and of the development of its structure, for the pursuit of an overriding common interest; authored as [Association] and consumed here and by Section 129a's reference to Section 129(2)	Association is true
CR0-P0	PROHIBITION	Actor	not realise	not CriminalOrganisations

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
anyone who	Tätersubjekt	{Actor}	–	in scope
{Actor} founds the association	Merkmal	{Founds}	CR0-R01	is true
{Actor} participates in the association as a member	Merkmal	{ParticipatesAsMember}	CR0-R02	is true
the association's purpose is directed at the commission of criminal offences	Merkmal	{PurposeDirectedAtOffences}	CR0-R03	is true
the association's activity is directed at the commission of criminal offences	Merkmal	{ActivityDirectedAtOffences}	CR0-R04	is true
{Actor} supports such an association	Merkmal	{Supports}	CR0-R05	is true
{Actor} recruits members for the association	Merkmal	{RecruitsMembers}	CR0-R06	is true
{Actor} recruits supporters for the association	Merkmal	{RecruitsSupporters}	CR0-R07	is true
an organised association of more than two persons	Merkmal	{OrganisedAssociation}	CR0-R08	is true
the association is designed for a longer duration	Merkmal	{LongerDuration}	CR0-R09	is true
the association is independent of a definition of roles of its members	Merkmal	{IndependentOfRoles}	CR0-R10	is true
the association is independent of the continuity of membership	Merkmal	{IndependentOfContinuity}	CR0-R11	is true
the association is independent of the development of its structure	Merkmal	{IndependentOfStructure}	CR0-R12	is true
the association pursues an overriding common interest	Merkmal	{OverridingCommonInterest}	CR0-R13	is true
severity threshold; (3) exemptions; (4) attempt; (5)–(7) grading and repentance	threshold / exemptions / grading	– excluded –	–	struck

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{ActivityDirectedAtOffences}	Boolean	true / false / unknown	Session	the association's activity is directed at the commission of criminal offences
{Actor}	Reference	–	Session	any person (the actor)
{Founds}	Boolean	true / false / unknown	Session	{Actor} founds the association
{IndependentOfContinuity}	Boolean	true / false / unknown	Session	the association is independent of the continuity of membership
{IndependentOfRoles}	Boolean	true / false / unknown	Session	the association is independent of a definition of roles of its members
{IndependentOfStructure}	Boolean	true / false / unknown	Session	the association is independent of the development of its structure
{LongerDuration}	Boolean	true / false / unknown	Session	the association is designed for a longer duration
{OrganisedAssociation}	Boolean	true / false / unknown	Session	an organised association of more than two persons
{OverridingCommonInterest}	Boolean	true / false / unknown	Session	the association pursues an overriding common interest
{ParticipatesAsMember}	Boolean	true / false / unknown	Session	{Actor} participates in the association as a member
{PurposeDirectedAtOffences}	Boolean	true / false / unknown	Session	the association's purpose is directed at the commission of criminal offences
{RecruitsMembers}	Boolean	true / false / unknown	Session	{Actor} recruits members for the association
{RecruitsSupporters}	Boolean	true / false / unknown	Session	{Actor} recruits supporters for the association
{Supports}	Boolean	true / false / unknown	Session	{Actor} supports such an association

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} founds the association or {Actor} participates in the association as a member) and (an organised association of more than two persons and the association is designed for a longer duration and the association is independent of a definition of roles of its members and the association is independent of the continuity of membership and the association is independent of the development of its structure and the association pursues an overriding common interest) and (the association's purpose is directed at the commission of criminal offences or the association's activity is directed at the commission of criminal offences)) or ((({Actor} supports such an association or {Actor} recruits members for the association or {Actor} recruits supporters for the association) and (an organised association of more than two persons and the association is designed for a longer duration and the association is independent of a definition of roles of its members and the association is independent of the continuity of membership and the association is independent of the development of its structure and the association pursues an overriding common interest) and (the association's purpose is directed at the commission of criminal offences or the association's activity is directed at the commission of criminal offences)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Association]	OrganisedAssociation, LongerDuration, IndependentOfRoles, IndependentOfContinuity, IndependentOfStructure, OverridingCommonInterest	false	Recomputes when any input changes; propagates into the composite.
[CriminalDirection]	PurposeDirectedAtOffences, ActivityDirectedAtOffences	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	Supports, RecruitsMembers, RecruitsSupporters, Association, CriminalDirection	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	Founds, ParticipatesAsMember, Association, CriminalDirection	false	Recomputes when any input changes; propagates into the composite.
[CriminalOrganisations]	Leg1, Leg2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (CR0-P0)	[CriminalOrganisations]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

```
PHASE 1: gather inputs (Session)
├ {ActivityDirectedAtOffences}
├ {Actor}
├ {Founds}
├ {IndependentOfContinuity}
├ {IndependentOfRoles}
├ {IndependentOfStructure}
├ {LongerDuration}
├ {OrganisedAssociation}
├ {OverridingCommonInterest}
├ {ParticipatesAsMember}
├ {PurposeDirectedAtOffences}
├ {RecruitsMembers}
├ {RecruitsSupporters}
├ {Supports}
↓
PHASE 2: evaluate act / intermediate computables
├ [Association] = OrganisedAssociation is true and LongerDuration is true and IndependentOfRoles is true and IndependentOfContinuity is true and IndependentOfStructure is true and OverridingCommonInterest is true
├ [CriminalDirection] = PurposeDirectedAtOffences is true or ActivityDirectedAtOffences is true
├ [Leg2] = (Supports is true or RecruitsMembers is true or RecruitsSupporters is true) and Association is true and CriminalDirection is true
├ [Leg1] = (Founds is true or ParticipatesAsMember is true) and Association is true and CriminalDirection is true
↓
PHASE 3: evaluate the objective conditions
├ [CriminalOrganisations] = Leg1 is true or Leg2 is true
↓
VERDICT (PrimeRule)
├ [CriminalOrganisations] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
├ [CriminalOrganisations] is false → not realised
```

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [CriminalOrganisations] depends on [Association], [CriminalDirection], [Leg2], [Leg1]; none refer back to [CriminalOrganisations]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{ActivityDirectedAtOffences}	Element/Datum: the association's activity is directed at the commission of criminal offences.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{Founds}	Element/Datum: {Actor} founds the association.?	Boolean
Q4	Session	{IndependentOfContinuity}	Element/Datum: the association is independent of the continuity of membership.?	Boolean
Q5	Session	{IndependentOfRoles}	Element/Datum: the association is independent of a definition of roles of its members.?	Boolean
Q6	Session	{IndependentOfStructure}	Element/Datum: the association is independent of the development of its structure.?	Boolean
Q7	Session	{LongerDuration}	Element/Datum: the association is designed for a longer duration.?	Boolean
Q8	Session	{OrganisedAssociation}	Element/Datum: an organised association of more than two persons.?	Boolean
Q9	Session	{OverridingCommonInterest}	Element/Datum: the association pursues an overriding common interest.?	Boolean
Q10	Session	{ParticipatesAsMember}	Element/Datum: {Actor} participates in the association as a member.?	Boolean
Q11	Session	{PurposeDirectedAtOffences}	Element/Datum: the association's purpose is directed at the commission of criminal offences.?	Boolean
Q12	Session	{RecruitsMembers}	Element/Datum: {Actor} recruits members for the association.?	Boolean
Q13	Session	{RecruitsSupporters}	Element/Datum: {Actor} recruits supporters for the association.?	Boolean
Q14	Session	{Supports}	Element/Datum: {Actor} supports such an association.?	Boolean

FLAGS

- SCOPE** Paragraph 1 both sentences (four conducts: founds, participates as member, supports, recruits members or supporters) and the whole of paragraph 2. Struck per the marked-up source: the two penalty heads, the two-year severity threshold of qualifying offences, (3) to (7).
- STRUCK THRESHOLD (RECORDED)** With the threshold struck, “Straftaten” stays at its general meaning; whether the directed-at offences meet the statutory two-year maximum resolves as an input, the §127 catalogue treatment.
- LIVE DEFINITION (PARAGRAPH 2)** The Vereinigung definition is live and authored as [Association], rule CRO-R80, consumed by both legs here and by §129a's express reference to §129(2) in this document.
- EXEMPTIONS STRUCK (RECORDED)** (3)'s political-party, subordinate-significance and §§84-87 exemptions are struck, the opposite treatment to the live exemptions of §261 and §108e(4); followed as marked and recorded as an editorial decision.
- TREATMENT** §129 is Operomise-tagged.

§129a · Formation of terrorist organisations TerroristOrganisations · provenance StGB 129a · (1), (2) and (5) conducts encoded; (3), (4), (6)-(9) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
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(1) Any person who founds an association (Section 129(2)) whose purposes or activity are directed at committing 1. murder (Section 211) or manslaughter (Section 212) or genocide (Section 6 of the Code of Crimes against International Law) or crimes against humanity (Section 7 of the Code of Crimes against International Law) or war crimes (Sections 8, 9, 10, 11 or 12 of the Code of Crimes against International Law), or 2. offences against personal liberty in the cases of Section 239a or Section 239b, 3. (repealed), or who participates in such an association as a member, shall be punished with imprisonment for a term of one to ten years. (2) The same penalty shall apply to anyone who founds an association whose purposes or activity are directed at committing 1. dangerous bodily harm (Section 224) or bodily harm (Section 223) inflicting on another person serious physical or mental harm, in particular of the kind designated in Section 226, 2. offences under Sections 303b, 305, 305a or common-danger offences in the cases of Sections 306 to 306c or 307(1) to (3), Section 308(1) to (5), Section 309(1) to (5), Sections 313, 314 or 315(1), (3) or (4), Section 316b(1) or (3) or Section 316c(1) to (3) or Section 317(1), 3. offences against the environment in the cases of Section 330a(1) to (3), 4. offences under Section 19(1) to (3), Section 20(1) or (2), Section 20a(1) to (3), each also in conjunction with Section 21, or under Section 22a(1) to (3) of the War Weapons Control Act, 5. offences under Section 51(1) to (3) or Section 52(1), (3), (5) or (6) of the Weapons Act, or 6. offences under Section 310(1) or (2) or Section 328(1) or (2), or who participates in such an association as a member, where one of the acts designated in numbers 1 to 6 is determined to intimidate the population in a substantial manner, to unlawfully coerce an authority or an international organisation by violence or threat of violence, or to destroy or substantially impair the political, constitutional, economic or social basic structures of a state or an international organisation, and where the act, through the manner of its commission or its effects, can seriously damage a state or an international organisation. (3) Where the purposes or activity of the association are directed at threatening one of the offences designated in paragraphs 1 and 2, imprisonment for a term of six months to five years shall be imposed. (4) Where the offender is one of the ringleaders or persons behind the association, imprisonment for a term of not less than three

«if TerroristOrganisations is true»(1) {Actor} who «if {Founds} is true»founds «end if» «if [Association] is true»an association (Section 129(2)) «end if» whose purposes or activity are directed at committing 1. «if {DirectedAtKillingOffences} is true»murder (Section 211) or manslaughter (Section 212) «end if» «if {DirectedAtVStGBCrimes} is true»or genocide (Section 6 VStGB) or crimes against humanity (Section 7 VStGB) or war crimes (Sections 8, 9, 10, 11 or 12 VStGB) «end if», or 2. «if {DirectedAtLibertyOffences} is true»offences against personal liberty in the cases of Section 239a or Section 239b «end if», 3. (repealed), or who «if {ParticipatesAsMember} is true»participates in such an association as a member «end if» ~~shall be punished with imprisonment for a term of one to ten years.~~ (2) ~~The same penalty shall apply to~~ {Actor} who «if {Founds} is true»founds «end if» «if [Association] is true»an association «end if» whose purposes or activity are directed at committing 1. «if {DirectedAtHarmOffences} is true»dangerous bodily harm (Section 224) or bodily harm (Section 223) inflicting on another person serious physical or mental harm, in particular of the kind designated in Section 226 «end if», 2. «if {DirectedAtCommonDangerOffences} is true»offences under Sections 303b, 305, 305a or common-danger offences in the cases of Sections 306 to 306c or 307(1) to (3), Section 308(1) to (5), Section 309(1) to (5), Sections 313, 314 or 315(1), (3) or (4), Section 316b(1) or (3) or Section 316c(1) to (3) or Section 317(1) «end if», 3. «if {DirectedAtEnvironmentalOffences} is true»offences against the environment in the cases of Section 330a(1) to (3) «end if», 4. «if {DirectedAtWarWeaponsOffences} is true»offences under Section 19(1) to (3), Section 20(1) or (2), Section 20a(1) to (3), each also in conjunction with Section 21, or under Section 22a(1) to (3) of the War Weapons Control Act «end if», 5. «if {DirectedAtWeaponsActOffences} is true»offences under Section 51(1) to (3) or Section 52(1), (3), (5) or (6) of the Weapons Act «end if», or 6. «if {DirectedAtPreparationOffences} is true»offences under Section 310(1) or (2) or Section 328(1) or (2) «end if», or who «if {ParticipatesAsMember} is

years shall be imposed in the cases of paragraphs 1 and 2, imprisonment for a term of one to ten years in the cases of paragraph 3. (5) Any person who supports an association designated in paragraph 1, 2 or 3 shall be punished, in the cases of paragraphs 1 and 2, with imprisonment for a term of six months to ten years, in the cases of paragraph 3 with imprisonment for up to five years or a fine. In the cases of sentence 1 the attempt is punishable. Any person who recruits members or supporters for an association designated in paragraph 1 or 2 shall be punished with imprisonment for a term of six months to five years. (6) The court may, in its discretion, mitigate the penalty for participants whose guilt is minor and whose participation is of subordinate significance in the cases of paragraphs 1, 2, 3 and 5. (7) Section 129(7) applies mutatis mutandis. (8) In addition to imprisonment of at least six months, the court may deprive the offender of the capacity to hold public office and the capacity to obtain rights from public elections. (9) In the cases of paragraphs 1, 2, 4 and 5 the court may order supervision of conduct (Section 68(1)).

true»participates in such an association as a member «end if», where one of the acts designated in numbers 1 to 6 is determined «if {IntimidatePopulation} is true»to intimidate the population in a substantial manner «end if», «if {CoerceAuthority} is true»to unlawfully coerce an authority «end if» «if {CoerceInternationalOrganisation} is true»or an international organisation «end if» by violence or threat of violence, or «if {DestroyBasicStructures} is true»to destroy «end if» «if {ImpairBasicStructures} is true»or substantially impair «end if» the political, constitutional, economic or social basic structures of a state or an international organisation, and where «if {CapableOfSeriousDamage} is true»the act, through the manner of its commission or its effects, can seriously damage a state or an international organisation «end if». (3) Where the purposes or activity of the association are directed at threatening one of the offences designated in paragraphs 1 and 2, imprisonment for a term of six months to five years shall be imposed. (4) Where the offender is one of the ringleaders or persons behind the association, imprisonment for a term of not less than three years shall be imposed in the cases of paragraphs 1 and 2, imprisonment for a term of one to ten years in the cases of paragraph 3. (5) {Actor} who «if {Supports} is true»supports an association designated in paragraph 1, 2 or 3 «end if» shall be punished, in the cases of paragraphs 1 and 2, with imprisonment for a term of six months to ten years, in the cases of paragraph 3 with imprisonment for up to five years or a fine. In the cases of sentence 1 the attempt is punishable. {Actor} who «if {RecruitsMembers} is true»recruits members «end if» «if {RecruitsSupporters} is true»or supporters «end if» for an association designated in paragraph 1 or 2 shall be punished with imprisonment for a term of six months to five years. (6) The court may, in its discretion, mitigate the penalty for participants whose guilt is minor and whose participation is of subordinate significance in the cases of paragraphs 1, 2, 3 and 5. (7) Section 129(7) applies mutatis mutandis. (8) In addition to imprisonment of at least six months, the court may deprive the offender of the capacity to hold public office and the capacity to obtain rights from public elections. (9) In the cases of paragraphs 1, 2, 4 and 5 the court may order supervision of conduct (Section 68(1)).«end if»

ANNEXES

COMPUTABLES

[Para2Catalogue] = DirectedAtHarmOffences is true or DirectedAtCommonDangerOffences is true or DirectedAtEnvironmentalOffences is true or DirectedAtWarWeaponsOffences is true or DirectedAtWeaponsActOffences is true or DirectedAtPreparationOffences is true

[TerroristPurpose] = IntimidatePopulation is true or CoerceAuthority is true or CoerceInternationalOrganisation is true or DestroyBasicStructures is true or ImpairBasicStructures is true

[TerroristQualification] = TerroristPurpose is true and CapableOfSeriousDamage is true

[Para2] = (Founds is true or ParticipatesAsMember is true) and Association is true and Para2Catalogue is true and TerroristQualification is true

[Para1Direction] = DirectedAtKillingOffences is true or DirectedAtVstGBCrimes is true or DirectedAtLibertyOffences is true

[Para5] = (Supports is true or RecruitsMembers is true or RecruitsSupporters is true) and Association is true

[Para1] = (Founds is true or ParticipatesAsMember is true) and Association is true and Para1Direction is true

[TerroristOrganisations] = Para1 is true or Para2 is true or Para5 is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
TOR-R01	ACT	Actor		Founds is true
TOR-R02	ACT	Actor		ParticipatesAsMember is true
TOR-R03	CONDITION	None		DirectedAtKillingOffences is true
TOR-R04	CONDITION	None		DirectedAtVstGBCrimes is true
TOR-R05	CONDITION	None		DirectedAtLibertyOffences is true
TOR-R06	CONDITION	None		DirectedAtHarmOffences is true
TOR-R07	CONDITION	None		DirectedAtCommonDangerOffences is true
TOR-R08	CONDITION	None		DirectedAtEnvironmentalOffences is true
TOR-R09	CONDITION	None		DirectedAtWarWeaponsOffences is true

TOR-R10	CONDITION	None		DirectedAtWeaponsActOffences is true
TOR-R11	CONDITION	None		DirectedAtPreparationOffences is true
TOR-R12	CONDITION	None		IntimidatePopulation is true
TOR-R13	CONDITION	None		CoerceAuthority is true
TOR-R14	CONDITION	None		CoerceInternationalOrganisation is true
TOR-R15	CONDITION	None		DestroyBasicStructures is true
TOR-R16	CONDITION	None		ImpairBasicStructures is true
TOR-R17	CONDITION	None		CapableOfSeriousDamage is true
TOR-R18	ACT	Actor		Supports is true
TOR-R19	ACT	Actor		RecruitsMembers is true
TOR-R20	ACT	Actor		RecruitsSupporters is true
TOR-R80	CONDITION	None	cross-scope reference: the association element resolves by name against [Association] of the Section 129 scope, per the express statutory reference to Section 129(2)	Association is true
TOR-P0	PROHIBITION	Actor	not realise	not TerroristOrganisations

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
an association (Section 129(2))	Merkmal (cross-scope)	[Association]	TOR-R80	resolves by name against the §129 scope
{Actor} founds the association	Merkmal	{Founds}	TOR-R01	is true
{Actor} participates in the association as a member	Merkmal	{ParticipatesAsMember}	TOR-R02	is true
the association is directed at committing a killing offence	Merkmal	{DirectedAtKillingOffences}	TOR-R03	is true
the association is directed at committing a crime under the Code of Crimes against International Law	Merkmal	{DirectedAtVStGBCrimes}	TOR-R04	is true
the association is directed at the named offences against personal liberty	Merkmal	{DirectedAtLibertyOffences}	TOR-R05	is true
the association is directed at the named bodily-harm offences inflicting serious harm	Merkmal	{DirectedAtHarmOffences}	TOR-R06	is true
the association is directed at the named common-danger offences	Merkmal	{DirectedAtCommonDangerOffences}	TOR-R07	is true
the association is directed at offences against the environment in the cases of Section 330a(1) to (3)	Merkmal	{DirectedAtEnvironmentalOffences}	TOR-R08	is true
the association is directed at offences under the War Weapons Control Act provisions named in number 4	Merkmal	{DirectedAtWarWeaponsOffences}	TOR-R09	is true
the association is directed at offences under the Weapons Act provisions named in number 5	Merkmal	{DirectedAtWeaponsActOffences}	TOR-R10	is true
the association is directed at the named preparation offences	Merkmal	{DirectedAtPreparationOffences}	TOR-R11	is true
the act is determined to intimidate the population in a substantial manner	Merkmal	{IntimidatePopulation}	TOR-R12	is true
the act is determined to unlawfully coerce an authority	Merkmal	{CoerceAuthority}	TOR-R13	is true
the act is determined to unlawfully coerce an international organisation	Merkmal	{CoerceInternationalOrganisation}	TOR-R14	is true
the act is determined to destroy the basic structures of a state	Merkmal	{DestroyBasicStructures}	TOR-R15	is true
the act is determined to substantially impair the basic structures of a state	Merkmal	{ImpairBasicStructures}	TOR-R16	is true
the act can seriously damage a state through the manner of its commission	Merkmal	{CapableOfSeriousDamage}	TOR-R17	is true
{Actor} supports an association designated in the paragraphs	Merkmal	{Supports}	TOR-R18	is true
{Actor} recruits members for the association	Merkmal	{RecruitsMembers}	TOR-R19	is true
{Actor} recruits supporters for the association	Merkmal	{RecruitsSupporters}	TOR-R20	is true
(3) threat variant; (4) ringleaders; (6)–(9) mitigation, repentance, consequences, supervision	variant / grading / consequences	– excluded –	–	struck

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{Association}	Boolean	true / false / unknown	Session	the association satisfies the Section 129(2) definition
{CapableOfSeriousDamage}	Boolean	true / false / unknown	Session	the act can seriously damage a state through the manner of its commission
{CoerceAuthority}	Boolean	true / false / unknown	Session	the act is determined to unlawfully coerce an authority
{CoerceInternationalOrganisation}	Boolean	true / false / unknown	Session	the act is determined to unlawfully coerce an international organisation
{DestroyBasicStructures}	Boolean	true / false / unknown	Session	the act is determined to destroy the basic structures of a state
{DirectedAtCommonDangerOffences}	Boolean	true / false / unknown	Session	the association is directed at the named common–danger offences
{DirectedAtEnvironmentalOffences}	Boolean	true / false / unknown	Session	the association is directed at offences against the environment in the cases of Section 330a(1) to (3)
{DirectedAtHarmOffences}	Boolean	true / false / unknown	Session	the association is directed at the named bodily–harm offences inflicting serious harm
{DirectedAtKillingOffences}	Boolean	true / false / unknown	Session	the association is directed at committing a killing offence
{DirectedAtLibertyOffences}	Boolean	true / false / unknown	Session	the association is directed at the named offences against personal liberty
{DirectedAtPreparationOffences}	Boolean	true / false / unknown	Session	the association is directed at the named preparation offences
{DirectedAtVstGBCrimes}	Boolean	true / false / unknown	Session	the association is directed at committing a crime under the Code of Crimes against International Law
{DirectedAtWarWeaponsOffences}	Boolean	true / false / unknown	Session	the association is directed at offences under the War Weapons Control Act provisions named in number 4
{DirectedAtWeaponsActOffences}	Boolean	true / false / unknown	Session	the association is directed at offences under the Weapons Act provisions named in number 5
{Founds}	Boolean	true / false / unknown	Session	{Actor} founds the association
{ImpairBasicStructures}	Boolean	true / false / unknown	Session	the act is determined to substantially impair the basic structures of a state
{IntimidatePopulation}	Boolean	true / false / unknown	Session	the act is determined to intimidate the population in a substantial manner
{ParticipatesAsMember}	Boolean	true / false / unknown	Session	{Actor} participates in the association as a member
{RecruitsMembers}	Boolean	true / false / unknown	Session	{Actor} recruits members for the association
{RecruitsSupporters}	Boolean	true / false / unknown	Session	{Actor} recruits supporters for the association
{Supports}	Boolean	true / false / unknown	Session	{Actor} supports an association designated in the paragraphs

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} founds the association or {Actor} participates in the association as a member) and the association satisfies the Section 129(2) definition and (the association is directed at committing a killing offence or the association is directed at committing a crime under the Code of Crimes against International Law or the association is directed at the named offences against personal liberty)) or ((({Actor} founds the association or {Actor} participates in the association as a member) and the association satisfies the Section 129(2) definition and (the association is directed at the named bodily–harm offences inflicting serious harm or the association is directed at the named common–danger offences or the association is directed at offences against the environment in the cases of Section 330a(1) to (3) or the association is directed at offences under the War Weapons Control Act provisions named in number 4 or the association is directed at offences under the Weapons Act provisions named in number 5 or the association is directed at the named preparation offences) and ((the act is determined to intimidate the population in a substantial manner or the act is determined to unlawfully coerce an authority or the act is determined to unlawfully coerce an international organisation or the act is determined to destroy the basic structures of a state or the act is determined to substantially impair the basic structures of a state) and the act can seriously damage a state through the manner of its commission)) or ((({Actor} supports an association designated in the paragraphs or {Actor} recruits members for the association or {Actor} recruits supporters for the association) and the association satisfies the Section 129(2) definition).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse–derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Para2Catalogue]	DirectedAtHarmOffences, DirectedAtCommonDangerOffences, DirectedAtEnvironmentalOffences, DirectedAtWarWeaponsOffences, DirectedAtWeaponsActOffences, DirectedAtPreparationOffences	false	Recomputes when any input changes; propagates into the composite.
[TerroristPurpose]	IntimidatePopulation, CoerceAuthority, CoerceInternationalOrganisation, DestroyBasicStructures, ImpairBasicStructures	false	Recomputes when any input changes; propagates into the composite.
[TerroristQualification]	TerroristPurpose, CapableOfSeriousDamage	false	Recomputes when any input changes; propagates into the composite.
[Para2]	Founds, ParticipatesAsMember, Association, Para2Catalogue, TerroristQualification	false	Recomputes when any input changes; propagates into the composite.
[Para1Direction]	DirectedAtKillingOffences, DirectedAtVstGBCrimes, DirectedAtLibertyOffences	false	Recomputes when any input changes; propagates into the composite.
[Para5]	Supports, RecruitsMembers, RecruitsSupporters, Association	false	Recomputes when any input changes; propagates into the composite.

Q15	Session	{DirectedAtWeaponsActOffences}	Element/Datum: the association is directed at offences under the Weapons Act provisions named in number 5.?	Boolean
Q16	Session	{Founds}	Element/Datum: {Actor} founds the association.?	Boolean
Q17	Session	{ImpairBasicStructures}	Element/Datum: the act is determined to substantially impair the basic structures of a state.?	Boolean
Q18	Session	{IntimidatePopulation}	Element/Datum: the act is determined to intimidate the population in a substantial manner.?	Boolean
Q19	Session	{ParticipatesAsMember}	Element/Datum: {Actor} participates in the association as a member.?	Boolean
Q20	Session	{RecruitsMembers}	Element/Datum: {Actor} recruits members for the association.?	Boolean
Q21	Session	{RecruitsSupporters}	Element/Datum: {Actor} recruits supporters for the association.?	Boolean
Q22	Session	{Supports}	Element/Datum: {Actor} supports an association designated in the paragraphs.?	Boolean

FLAGS

SCOPE Paragraphs 1 and 2 whole (minus penalty heads) and the live conducts of paragraph 5. Struck per the marked-up source: (1)'s penalty, (2)'s “Ebenso wird bestraft” head, (3), (4), (5)'s penalties and attempt sentence, (6) to (9).

CROSS-SCOPE REFERENCE “eine Vereinigung (§ 129 Absatz 2)” resolves by name against **[Association]** of the §129 scope in this document, rule TOR-R80; the runtime caveat on cross-scope resolution applies.

MIXED REFERENCE RESOLUTION (THE §310 PATTERN) The directed-at catalogues mix in-corpus references (§§211/212 via UnlawfulKilling, 239a, 239b, 223, 224, 226, 303b, 305, 306, 307(1), 308, 309, 315, 316c, 317, 310) with paragraph ranges and statutes outside the corpus (VStGB, 305a, 306a–c, 307(2)–(3), 313, 314, 316b, 330a, KrWaffKG, WaffG, 328). Each catalogue number stands as one predicate variable carrying its references in the surface; whether a concrete directed-at offence falls within a number resolves as an input, partially supported by the encoded scopes.

TERRORIST QUALIFICATION (PARAGRAPH 2 TAIL) The qualification is conjunctive: one of the five determinations (**[TerroristPurpose]**) and the capability of serious damage (**{CapableOfSeriousDamage}**) must both hold, and it gates only the paragraph 2 catalogue, not paragraph 1, faithful to the drafting.

PARAGRAPH 5 REFERENCE TO STRUCK (3) The live support conduct references associations designated in (1), (2) “or (3)”; (3) being struck, whether an association is one designated in (3) resolves as an input, the §310 treatment of references into struck text.

TREATMENT §129a is Operomise-tagged; §129b is Excluded.

§130a · Instructions for committing offences

InstructionsForOffences · provenance StGB 130a · (1)-(2) encoded; (3) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) Any person who disseminates or makes accessible to the public a content (Section 11(3)) which is capable of serving as instructions for an unlawful act named in Section 126(1) and which is determined to promote or awaken the readiness of others to commit such an act shall be punished with imprisonment for up to three years or a fine. (2) The same penalty shall apply to anyone who 1. disseminates or makes accessible to the public a content (Section 11(3)) which is capable of serving as instructions for an unlawful act named in Section 126(1), or 2. publicly or in an assembly gives instructions for an unlawful act named in Section 126(1), in order to promote or awaken the readiness of others to commit such an act. (3) Section 86(4) applies mutatis mutandis.	«if InstructionsForOffences is true»(1) {Actor} who «if {Disseminates} is true»disseminates «end if» «if {MakesPubliclyAccessible} is true»or makes accessible to the public «end if» «if {ContentStatutory} is true»a content (Section 11(3)) «end if» which is «if {CapableAsInstructions} is true»capable of serving as instructions for an unlawful act named in Section 126(1) «end if» and which is determined «if {DeterminedToPromoteReadiness} is true»to promote «end if» «if {DeterminedToAwakenReadiness} is true»or awaken «end if» the readiness of others to commit such an act shall be punished with imprisonment for up to three years or a fine. (2) The same penalty shall apply to {Actor} who 1. «if {Disseminates} is true»disseminates «end if» «if {MakesPubliclyAccessible} is true»or makes accessible to the public «end if» «if {ContentStatutory} is true»a content (Section 11(3)) «end if» which is «if {CapableAsInstructions} is true»capable of serving as instructions for an unlawful act named in Section 126(1) «end if», or 2. «if {Publicly} is true»publicly «end if» «if {InAssembly} is true»or in an assembly «end if» «if {GivesInstructions} is true»gives instructions for an unlawful act named in Section 126(1) «end if», in order «if {ActsToPromoteReadiness} is true»to promote «end if» «if {ActsToAwakenReadiness} is true»or awaken «end if» the readiness of others to commit such an act. (3) Section 86(4) applies mutatis mutandis.«end if»

ANNEXES

COMPUTABLES

[Para2No2] = (Publicly is true or InAssembly is true) and GivesInstructions is true

[Spread] = Disseminates is true or MakesPubliclyAccessible is true

[Para2No1] = Spread is true and ContentStatutory is true and CapableAsInstructions is true

[Para1] = Spread is true and ContentStatutory is true and CapableAsInstructions is true and (DeterminedToPromoteReadiness is true or DeterminedToAwakenReadiness is true)

[Purpose] = ActsToPromoteReadiness is true or ActsToAwakenReadiness is true

[Para2] = (Para2No1 is true or Para2No2 is true) and Purpose is true

[InstructionsForOffences] = Para1 is true or Para2 is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
IF0-R01	ACT	Actor		Disseminates is true

IF0-R02	ACT	Actor		MakesPubliclyAccessible is true
IF0-R03	CONDITION	None		ContentStatutory is true
IF0-R04	CONDITION	None		CapableAsInstructions is true
IF0-R05	CONDITION	None		DeterminedToPromoteReadiness is true
IF0-R06	CONDITION	None		DeterminedToAwakenReadiness is true
IF0-R07	CONDITION	None		Publicly is true
IF0-R08	CONDITION	None		InAssembly is true
IF0-R09	ACT	Actor		GivesInstructions is true
IF0-R10	ACT	Actor		ActsToPromoteReadiness is true
IF0-R11	ACT	Actor		ActsToAwakenReadiness is true
IF0-P0	PROHIBITION	Actor	not realise	not InstructionsForOffences

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} disseminates the content	Merkmal	{Disseminates}	IF0-R01	is true
{Actor} makes the content accessible to the public	Merkmal	{MakesPubliclyAccessible}	IF0-R02	is true
a content (Section 11(3))	Merkmal	{ContentStatutory}	IF0-R03	is true
the content is capable of serving as instructions for an unlawful act named in Section 126(1)	Merkmal	{CapableAsInstructions}	IF0-R04	is true
the content is determined to promote the readiness of others to commit such an act	Merkmal	{DeterminedToPromoteReadiness}	IF0-R05	is true
the content is determined to awaken the readiness of others to commit such an act	Merkmal	{DeterminedToAwakenReadiness}	IF0-R06	is true
publicly	Merkmal	{Publicly}	IF0-R07	is true
in an assembly	Merkmal	{InAssembly}	IF0-R08	is true
{Actor} gives instructions for an unlawful act named in Section 126(1)	Merkmal	{GivesInstructions}	IF0-R09	is true
{Actor} acts in order to promote the readiness of others to commit such an act	Merkmal	{ActsToPromoteReadiness}	IF0-R10	is true
{Actor} acts in order to awaken the readiness of others to commit such an act	Merkmal	{ActsToAwakenReadiness}	IF0-R11	is true
(3) Section 86(4) bridge	bridge	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ActsToAwakenReadiness}	Boolean	true / false / unknown	Session	{Actor} acts in order to awaken the readiness of others to commit such an act
{ActsToPromoteReadiness}	Boolean	true / false / unknown	Session	{Actor} acts in order to promote the readiness of others to commit such an act
{CapableAsInstructions}	Boolean	true / false / unknown	Session	the content is capable of serving as instructions for an unlawful act named in Section 126(1)
{ContentStatutory}	Boolean	true / false / unknown	Session	a content (Section 11(3))
{DeterminedToAwakenReadiness}	Boolean	true / false / unknown	Session	the content is determined to awaken the readiness of others to commit such an act
{DetexminedToPromoteReadiness}	Boolean	true / false / unknown	Session	the content is determined to promote the readiness of others to commit such an act
{Disseminates}	Boolean	true / false / unknown	Session	{Actor} disseminates the content
{GivesInstructions}	Boolean	true / false / unknown	Session	{Actor} gives instructions for an unlawful act named in Section 126(1)
{InAssembly}	Boolean	true / false / unknown	Session	in an assembly
{MakesPubliclyAccessible}	Boolean	true / false / unknown	Session	{Actor} makes the content accessible to the public
{Publicly}	Boolean	true / false / unknown	Session	publicly

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} disseminates the content or {Actor} makes the content accessible to the public) and a content (Section 11(3)) and the content is capable of serving as instructions for an unlawful act named in Section 126(1) and (the content is determined to promote the readiness of others to commit such an act or the content is determined to awaken the readiness of others to commit such an act)) or (((({Actor} disseminates the content or {Actor} makes the content accessible to the public) and a content (Section 11(3)) and the content is capable of serving as instructions for an unlawful act named in Section 126(1)) or ((publicly or in an assembly) and {Actor} gives instructions for an unlawful act named in Section 126(1))) and ({Actor} acts in order to promote the readiness of others to commit such an act or {Actor} acts in order to awaken the readiness of others to commit such an act)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Para2No2]	Publicly, InAssembly, GivesInstructions	false	Recomputes when any input changes; propagates into the composite.
[Spread]	Disseminates, MakesPubliclyAccessible	false	Recomputes when any input changes; propagates into the composite.
[Para2No1]	Spread, ContentStatutory, CapableAsInstructions	false	Recomputes when any input changes; propagates into the composite.
[Para1]	Spread, ContentStatutory, CapableAsInstructions, DeterminedToPromoteReadiness, DeterminedToAwakenReadiness	false	Recomputes when any input changes; propagates into the composite.
[Purpose]	ActsToPromoteReadiness, ActsToAwakenReadiness	false	Recomputes when any input changes; propagates into the composite.

[Para2]	Para2No1, Para2No2, Purpose	false	Recomputes when any input changes; propagates into the composite.
[InstructionsForOffences]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (IF0-P0)	[InstructionsForOffences]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session) {Actor} {ActsToAwakenReadiness} {ActsToPromoteReadiness} {CapableAsInstructions} {ContentStatutory} {DeterminedToAwakenReadiness} {DeterminedToPromoteReadiness} {Disseminates} {GivesInstructions} {InAssembly} {MakesPubliclyAccessible} {Publicly}
↓
PHASE 2: evaluate act / intermediate computables [Para2No2] = (Publicly is true or InAssembly is true) and GivesInstructions is true [Spread] = Disseminates is true or MakesPubliclyAccessible is true [Para2No1] = Spread is true and ContentStatutory is true and CapableAsInstructions is true [Para1] = Spread is true and ContentStatutory is true and CapableAsInstructions is true and (DeterminedToPromoteReadiness is true or DeterminedToAwakenReadiness is true) [Purpose] = ActsToPromoteReadiness is true or ActsToAwakenReadiness is true [Para2] = (Para2No1 is true or Para2No2 is true) and Purpose is true
↓
PHASE 3: evaluate the objective conditions [InstructionsForOffences] = Para1 is true or Para2 is true
↓
VERDICT (PrimeRule) [InstructionsForOffences] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions) [InstructionsForOffences] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [InstructionsForOffences] depends on [Para2No2], [Spread], [Para2No1], [Para1], [Purpose], [Para2]; none refer back to [InstructionsForOffences]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ActsToAwakenReadiness}	Element/Datum: {Actor} acts in order to awaken the readiness of others to commit such an act.?	Boolean
Q3	Session	{ActsToPromoteReadiness}	Element/Datum: {Actor} acts in order to promote the readiness of others to commit such an act.?	Boolean
Q4	Session	{CapableAsInstructions}	Element/Datum: the content is capable of serving as instructions for an unlawful act named in Section 126(1).?	Boolean
Q5	Session	{ContentStatutory}	Element/Datum: a content (Section 11(3)).?	Boolean
Q6	Session	{DeterminedToAwakenReadiness}	Element/Datum: the content is determined to awaken the readiness of others to commit such an act.?	Boolean
Q7	Session	{DeterminedToPromoteReadiness}	Element/Datum: the content is determined to promote the readiness of others to commit such an act.?	Boolean
Q8	Session	{Disseminates}	Element/Datum: {Actor} disseminates the content.?	Boolean
Q9	Session	{GivesInstructions}	Element/Datum: {Actor} gives instructions for an unlawful act named in Section 126(1).?	Boolean
Q10	Session	{InAssembly}	Element/Datum: in an assembly.?	Boolean
Q11	Session	{MakesPubliclyAccessible}	Element/Datum: {Actor} makes the content accessible to the public.?	Boolean
Q12	Session	{Publicly}	Element/Datum: publicly.?	Boolean

FLAGS

SCOPE	Paragraphs 1 and 2 whole. Struck per the marked-up source: (1)'s penalty, (2)'s "Ebenso wird bestraft" head, and (3).
TWO DETERMINATION SITES	In (1) the promote-or-awaken determination attaches to the content; in (2) it is the actor's purpose spanning both numbers. Carried as separate variable pairs accordingly.
§126(1) REFERENCE	§126 is Excluded in the Treatment column; whether an act is one named in §126(1) resolves as an input inside {CapableAsInstructions} and {GivesInstructions}.
TREATMENT	§130a is Operomise-tagged; §130 and §131 are Excluded.

§138 · Failure to report planned offences

FailureToReportPlannedOffences · provenance StGB 138 · (1) chapeau encoded; catalogue, (2)-(3) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
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(1) Any person who credibly learns of the planning or the execution of 1. (repealed), 2. high treason in the cases of Sections 81 to 83(1), 3. treason or an endangering of external security in the cases of Sections 94 to 96,	«if FailureToReportPlannedOffences is true»(1) {Actor} who «if {LearnsCredibly} is true»credibly learns «end if» «if {OfPlanning} is true»of the planning «end
--	--

97a or 100, 4. a counterfeiting of money or securities in the cases of Sections 146, 151, 152 or a counterfeiting of payment cards with a guarantee function in the cases of Section 152b(1) to (3), 5. a murder (Section 211) or manslaughter (Section 212) or a genocide (Section 6 VStGB) or a crime against humanity (Section 7 VStGB) or a war crime (Sections 8 to 12 VStGB) or a crime of aggression (Section 13 VStGB), 6. an offence against personal liberty in the cases of Section 232(3) sentence 2, Section 232a(3), (4) or (5), Section 232b(3) or (4), Section 233a(3) or (4), each in so far as it is a serious criminal offence, Sections 234 to 234b, 239a or 239b, 7. a robbery or a robbery-like extortion (Sections 249 to 251 or 255), or 8. a common-danger offence in the cases of Sections 306 to 306c or 307(1) to (3), Section 308(1) to (5), Section 309(1) to (5), Sections 310, 313, 314 or 315(3), Section 315b(3) or Sections 316a or 316c, at a time at which the execution or the result can still be averted, and fails to make a report to the authority or the threatened person in time, shall be punished with imprisonment for up to five years or a fine. (2) The same penalty shall apply to anyone who 1. credibly learns of the execution of an offence under Section 89a(1) in conjunction with (2) or (2a), or 2. credibly learns of the planning or the execution of an offence under Section 129a, also in conjunction with Section 129b(1) sentences 1 and 2, at a time at which the execution can still be averted, and fails to report it to the authority without delay. Section 129b(1) sentences 3 to 5 applies mutatis mutandis in the case of number 2. (3) Any person who recklessly fails to make the report although they have credibly learned of the planning or the execution of the unlawful act shall be punished with imprisonment for up to one year or a fine.

if **«if {OfExecution} is true»** or the execution **«end if»** of **«if {CatalogueOffence} is true»** an offence named in the catalogue of paragraph 1 **«end if»** 1. (repealed), 2. high treason in the cases of Sections 81 to 83(1), 3. treason or an endangering of external security in the cases of Sections 94 to 96, 97a or 100, 4. a counterfeiting of money or securities in the cases of Sections 146, 151, 152 or a counterfeiting of payment cards with a guarantee function in the cases of Section 152b(1) to (3), 5. a murder (Section 211) or manslaughter (Section 212) or a genocide (Section 6 VStGB) or a crime against humanity (Section 7 VStGB) or a war crime (Sections 8 to 12 VStGB) or a crime of aggression (Section 13 VStGB), 6. an offence against personal liberty in the cases of Section 232(3) sentence 2, Section 232a(3), (4) or (5), Section 232b(3) or (4), Section 233a(3) or (4), each in so far as it is a serious criminal offence, Sections 234 to 234b, 239a or 239b, 7. a robbery or a robbery-like extortion (Sections 249 to 251 or 255), or 8. a common-danger offence in the cases of Sections 306 to 306c or 307(1) to (3), Section 308(1) to (5), Section 309(1) to (5), Sections 310, 313, 314 or 315(3), Section 315b(3) or Sections 316a or 316c, at a time at which **«if {ExecutionStillAvertable} is true»** the execution **«end if»** **«if {ResultStillAvertable} is true»** or the result **«end if»** can still be averted, and **«if {FailsToReportInTime} is true»** fails to make a report to the authority or the threatened person in time **«end if»** shall be punished with imprisonment for up to five years or a fine. (2) The same penalty shall apply to anyone who 1. credibly learns of the execution of an offence under Section 89a(1) in conjunction with (2) or (2a), or 2. credibly learns of the planning or the execution of an offence under Section 129a, also in conjunction with Section 129b(1) sentences 1 and 2, at a time at which the execution can still be averted, and fails to report it to the authority without delay. Section 129b(1) sentences 3 to 5 applies mutatis mutandis in the case of number 2. (3) Any person who recklessly fails to make the report although they have credibly learned of the planning or the execution of the unlawful act shall be punished with imprisonment for up to one year or a fine. **«end if»**

ANNEXES

COMPUTABLES

[Knowledge] = **LearnsCredibly** is true and (**OfPlanning** is true or **OfExecution** is true)

[Avertable] = **ExecutionStillAvertable** is true or **ResultStillAvertable** is true

[FailureToReportPlannedOffences] = **Knowledge** is true and **CatalogueOffence** is true and **Avertable** is true and **FailsToReportInTime** is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
FRP-R01	ACT	Actor		LearnsCredibly is true
FRP-R02	CONDITION	None		OfPlanning is true
FRP-R03	CONDITION	None		OfExecution is true
FRP-R04	CONDITION	None		CatalogueOffence is true
FRP-R05	CONDITION	None		ExecutionStillAvertable is true
FRP-R06	CONDITION	None		ResultStillAvertable is true
FRP-R07	ACT	Actor		FailsToReportInTime is true
FRP-P0	PROHIBITION	Actor	not realise	not FailureToReportPlannedOffences

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} credibly learns of the matter	Merkmal	{LearnsCredibly}	FRP-R01	is true
of the planning of the offence	Merkmal	{OfPlanning}	FRP-R02	is true
of the execution of the offence	Merkmal	{OfExecution}	FRP-R03	is true
the offence is one named in the catalogue of paragraph 1	Merkmal	{CatalogueOffence}	FRP-R04	is true
the execution can still be averted at that time	Merkmal	{ExecutionStillAvertable}	FRP-R05	is true
the result can still be averted at that time	Merkmal	{ResultStillAvertable}	FRP-R06	is true
{Actor} fails to make a timely report	Merkmal	{FailsToReportInTime}	FRP-R07	is true
the eight-number offence catalogue; (2) terrorism variants; (3) recklessness	catalogue / variants	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{CatalogueOffence}	Boolean	true / false / unknown	Session	the offence is one named in the catalogue of paragraph 1
{ExecutionStillAvertable}	Boolean	true / false / unknown	Session	the execution can still be averted at that time

{FailsToReportInTime}	Boolean	true / false / unknown	Session	{Actor} fails to make a timely report
{LearnsCredibly}	Boolean	true / false / unknown	Session	{Actor} credibly learns of the matter
{OfExecution}	Boolean	true / false / unknown	Session	of the execution of the offence
{OfPlanning}	Boolean	true / false / unknown	Session	of the planning of the offence
{ResultStillAvertable}	Boolean	true / false / unknown	Session	the result can still be averted at that time

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} credibly learns of the matter and (of the planning of the offence or of the execution of the offence)) and the offence is one named in the catalogue of paragraph 1 and (the execution can still be averted at that time or the result can still be averted at that time) and {Actor} fails to make a timely report.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Knowledge]	LearnsCredibly, OfPlanning, OfExecution	false	Recomputes when any input changes; propagates into the composite.
[Avertable]	ExecutionStillAvertable, ResultStillAvertable	false	Recomputes when any input changes; propagates into the composite.
[FailureToReportPlannedOffences]	Knowledge, CatalogueOffence, Avertable, FailsToReportInTime	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (FRP-P0)	[FailureToReportPlannedOffences]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {CatalogueOffence}
- └ {ExecutionStillAvertable}
- └ {FailsToReportInTime}
- └ {LearnsCredibly}
- └ {OfExecution}
- └ {OfPlanning}
- └ {ResultStillAvertable}

↓

PHASE 2: evaluate act / intermediate computables

- └ [Knowledge] = LearnsCredibly is true and (OfPlanning is true or OfExecution is true)
- └ [Avertable] = ExecutionStillAvertable is true or ResultStillAvertable is true

↓

PHASE 3: evaluate the objective conditions

- └ [FailureToReportPlannedOffences] = Knowledge is true and CatalogueOffence is true and Avertable is true and FailsToReportInTime is true

↓

VERDICT (PrimeRule)

- └ [FailureToReportPlannedOffences] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [FailureToReportPlannedOffences] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [FailureToReportPlannedOffences] depends on [Knowledge], [Avertable]; none refer back to [FailureToReportPlannedOffences]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{CatalogueOffence}	Element/Datum: the offence is one named in the catalogue of paragraph 1.?	Boolean
Q3	Session	{ExecutionStillAvertable}	Element/Datum: the execution can still be averted at that time.?	Boolean
Q4	Session	{FailsToReportInTime}	Element/Datum: {Actor} fails to make a timely report.?	Boolean
Q5	Session	{LearnsCredibly}	Element/Datum: {Actor} credibly learns of the matter.?	Boolean
Q6	Session	{OfExecution}	Element/Datum: of the execution of the offence.?	Boolean
Q7	Session	{OfPlanning}	Element/Datum: of the planning of the offence.?	Boolean
Q8	Session	{ResultStillAvertable}	Element/Datum: the result can still be averted at that time.?	Boolean

FLAGS

SCOPE Paragraph 1's chapeau and closing. Struck per the marked-up source: the entire eight-number offence catalogue, the penalty, (2) and (3) whole.

STRUCK CATALOGUE (RECORDED) The fourth occurrence of the pattern in this document (§127, §129, §140): whether the offence learned of is one named in the struck catalogue resolves as the input **{CatalogueOffence}**; the catalogue text stands struck in the source column for reference.

OMISSION OFFENCE The conduct is the failure: **{FailsToReportInTime}** carries the omission with the two report addressees (the authority or the threatened person) in the markup; a report to either in time defeats the element.

TREATMENT §138 is Operomise-tagged; §139 is Excluded.

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
Any person who rewards or, in a manner capable of disturbing public peace, publicly, in an assembly or by disseminating content (Section 11(3)) condones one of the unlawful acts named in Section 138(1) nos. 2 to 4 and 5 last alternative or in Section 126(1), or an unlawful act under Section 176(1) or under Sections 176c and 176d, 1. after it has been committed or attempted in a punishable manner, or 2. [as above], shall be punished with imprisonment for up to three years or a fine.	«if RewardingAndCondoningOffences is true»{Actor} who one of the unlawful acts named in Section 138(1) nos. 2 to 4 and 5 last alternative or in Section 126(1), or «if {UnlawfulAct} is true»an unlawful act «end if» under Section 176(1) or under Sections 176c and 176d 1. «if {Rewards} is true»rewards «end if», «if {AfterCommitted} is true»after it has been committed «end if» «if {AfterPunishablyAttempted} is true»or attempted in a punishable manner «end if», or 2. «if {MannerCapableOfDisturbingPeace} is true»in a manner capable of disturbing public peace «end if», «if {Publicly} is true»publicly «end if» «if {InAssembly} is true», in an assembly «end if» «if {ByDisseminatingContent} is true»or by disseminating content (Section 11(3)) «end if» «if {Condones} is true»condones «end if» shall be punished with imprisonment for up to three years or a fine.«end if»

ANNEXES

COMPUTABLES

[Leg2] = Condones is true and (Publicly is true or InAssembly is true or ByDisseminatingContent is true) and MannerCapableOfDisturbingPeace is true [Leg1] = Rewards is true and (AfterCommitted is true or AfterPunishablyAttempted is true) [RewardingAndCondoningOffences] = UnlawfulAct is true and (Leg1 is true or Leg2 is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
RCO-R01	CONDITION	None		UnlawfulAct is true
RCO-R02	ACT	Actor		Rewards is true
RCO-R03	CONDITION	None		AfterCommitted is true
RCO-R04	CONDITION	None		AfterPunishablyAttempted is true
RCO-R05	ACT	Actor		Condones is true
RCO-R06	CONDITION	None		Publicly is true
RCO-R07	CONDITION	None		InAssembly is true
RCO-R08	CONDITION	None		ByDisseminatingContent is true
RCO-R09	CONDITION	None		MannerCapableOfDisturbingPeace is true
RCO-P0	PROHIBITION	Actor	not realise	not RewardingAndCondoningOffences

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
an unlawful act	Merkmal	{UnlawfulAct}	RCO-R01	is true
{Actor} rewards the act	Merkmal	{Rewards}	RCO-R02	is true
after the act has been committed	Merkmal	{AfterCommitted}	RCO-R03	is true
after the act has been attempted in a punishable manner	Merkmal	{AfterPunishablyAttempted}	RCO-R04	is true
{Actor} condones the act	Merkmal	{Condones}	RCO-R05	is true
publicly	Merkmal	{Publicly}	RCO-R06	is true
in an assembly	Merkmal	{InAssembly}	RCO-R07	is true
by disseminating content (Section 11(3))	Merkmal	{ByDisseminatingContent}	RCO-R08	is true
in a manner capable of disturbing public peace	Merkmal	{MannerCapableOfDisturbingPeace}	RCO-R09	is true
the §138(1)/§126(1)/§176 reference list	catalogue	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{AfterCommitted}	Boolean	true / false / unknown	Session	after the act has been committed
{AfterPunishablyAttempted}	Boolean	true / false / unknown	Session	after the act has been attempted in a punishable manner
{ByDisseminatingContent}	Boolean	true / false / unknown	Session	by disseminating content (Section 11(3))
{Condones}	Boolean	true / false / unknown	Session	{Actor} condones the act
{InAssembly}	Boolean	true / false / unknown	Session	in an assembly
{MannerCapableOfDisturbingPeace}	Boolean	true / false / unknown	Session	in a manner capable of disturbing public peace
{Publicly}	Boolean	true / false / unknown	Session	publicly
{Rewards}	Boolean	true / false / unknown	Session	{Actor} rewards the act
{UnlawfulAct}	Boolean	true / false / unknown	Session	an unlawful act

Committed by any person (the actor) who: an unlawful act and (({Actor} rewards the act and (after the act has been committed or after the act has been attempted in a punishable manner)) or ({Actor} condones the act and (publicly or in an assembly or by disseminating content (Section 11(3))) and in a manner capable of disturbing public peace)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Leg2]	Condone s, Publicly, InAssembly, ByDisseminatingContent, MannerCapableOfDisturbingPeace	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	Reward s, AfterCommitted, AfterPunishablyAttempted	false	Recomputes when any input changes; propagates into the composite.
[RewardingAndCondoningOffences]	UnlawfulAct, Leg1, Leg2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (RCO-P0)	[RewardingAndCondoningOffences]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

```
PHASE 1: gather inputs (Session)
├ {Actor}
├ {AfterCommitted}
├ {AfterPunishablyAttempted}
├ {ByDisseminatingContent}
├ {Condone s}
├ {InAssembly}
├ {MannerCapableOfDisturbingPeace}
├ {Publicly}
├ {Reward s}
└ {UnlawfulAct}
↓
PHASE 2: evaluate act / intermediate computables
├ [Leg2] = Condone s is true and (Publicly is true or InAssembly is true or ByDisseminatingContent is true) and MannerCapableOfDisturbingPeace is true
└ [Leg1] = Reward s is true and (AfterCommitted is true or AfterPunishablyAttempted is true)
↓
PHASE 3: evaluate the objective conditions
└ [RewardingAndCondoningOffences] = UnlawfulAct is true and (Leg1 is true or Leg2 is true)
↓
VERDICT (PrimeRule)
├ [RewardingAndCondoningOffences] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└ [RewardingAndCondoningOffences] is false → not realised
```

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [RewardingAndCondoningOffences] depends on [Leg2], [Leg1]; none refer back to [RewardingAndCondoningOffences]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{AfterCommitted}	Element/Datum: after the act has been committed.?	Boolean
Q3	Session	{AfterPunishablyAttempted}	Element/Datum: after the act has been attempted in a punishable manner.?	Boolean
Q4	Session	{ByDisseminatingContent}	Element/Datum: by disseminating content (Section 11(3)).?	Boolean
Q5	Session	{Condone s}	Element/Datum: {Actor} condones the act.?	Boolean
Q6	Session	{InAssembly}	Element/Datum: in an assembly.?	Boolean
Q7	Session	{MannerCapableOfDisturbingPeace}	Element/Datum: in a manner capable of disturbing public peace.?	Boolean
Q8	Session	{Publicly}	Element/Datum: publicly.?	Boolean
Q9	Session	{Reward s}	Element/Datum: {Actor} rewards the act.?	Boolean
Q10	Session	{UnlawfulAct}	Element/Datum: an unlawful act.?	Boolean

FLAGS

SCOPE The single sentence with its two conducts. Struck per the marked-up source: the qualifying reference list (§138(1) nos. 2–4 and 5 last alternative, §126(1), §176(1), §§176c–176d) and the penalty.

STRUCK REFERENCES (RECORDED) With the references struck, “eine rechtswidrige Tat” stays at its general meaning; whether the act falls within the struck reference list resolves as an input. The same pattern as §127, §129 and §138 in this document.

TWO CONDUCTS Rewarding requires the act committed or punishably attempted; condoning requires the public mode and the peace-disturbing capability. The temporal and modal qualifications attach to their own conducts only.

TREATMENT §140 is Operomise-tagged.

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) A person involved in an accident who, after an accident in road traffic, leaves the accident site before they 1. have enabled, for the benefit of the other persons involved and the injured, the determination of their person, their vehicle and the nature of their involvement, by their presence and by the statement that they are involved in the accident, or 2. have waited a time reasonable in the circumstances without anyone being ready to make the determinations, shall be punished with imprisonment for up to three years or a fine. (2) A person involved in an accident shall also be punished under paragraph 1 who 1. after expiry of the waiting period (paragraph 1 no. 2), or 2. justifiedly or excusedly, has left the accident site and does not enable the determinations retrospectively without delay. (3) A person involved satisfies the obligation to enable the determinations retrospectively if they inform the entitled person (paragraph 1 no. 1) or a nearby police station that they were involved in the accident, and state their address, their whereabouts and the registration number and location of their vehicle, and keep it available for determinations without delay for a time reasonable for them. This does not apply if by their conduct they intentionally frustrate the determinations. (4) The court mitigates the penalty (Section 49(1)) in the cases of paragraphs 1 and 2 or may dispense with punishment under these provisions where the person involved, within twenty-four hours of an accident outside flowing traffic resulting exclusively in insignificant material damage, voluntarily enables the determinations retrospectively (paragraph 3). (5) A person involved in an accident is anyone whose conduct, in the circumstances, may have contributed to causing the accident.	«if LeavingSceneOfAccident is true»(1) «if {PersonInvolvedInAccident} is true»A person involved in the accident «end if» who, after «if {RoadTrafficAccident} is true»an accident in road traffic «end if», «if {LeavesAccidentSite} is true»leaves the accident site «end if» before «if {EnabledDeterminations} is false»1. having enabled, for the benefit of the other persons involved and the injured, the determination of their person, their vehicle and the nature of their involvement, by their presence and by the statement that they are involved in the accident, or «end if» «if {WaitedReasonableTime} is false»2. having waited a time reasonable in the circumstances «end if» «if {NobodyReadyToDetermine} is true»without anyone being ready to make the determinations «end if» shall be punished with imprisonment for up to three years or a fine. (2) A person involved in an accident shall also be punished under paragraph 1 «if {PersonInvolvedInAccident} is true»a person involved in the accident «end if» who 1. «if {LeftAfterWaitingPeriod} is true»after expiry of the waiting period (paragraph 1 no. 2) «end if», or 2. «if {LeftJustifiedOrExcused} is true»justifiedly or excusedly «end if», has left the accident site and «if {FailsToEnableRetrospectively} is true»does not enable the determinations retrospectively without delay «end if». (3) A person involved satisfies the obligation to enable the determinations retrospectively if they inform the entitled person (paragraph 1 no. 1) or a nearby police station that they were involved in the accident, and state their address, their whereabouts and the registration number and location of their vehicle, and keep it available for determinations without delay for a time reasonable for them. This does not apply if by their conduct they intentionally frustrate the determinations. (4) The court mitigates the penalty (Section 49(1)) in the cases of paragraphs 1 and 2 or may dispense with punishment under these provisions where the person involved, within twenty-four hours of an accident outside flowing traffic resulting exclusively in insignificant material damage, voluntarily enables the determinations retrospectively (paragraph 3). (5) A person involved in an accident is anyone whose conduct, in the circumstances, may have contributed to causing the accident.«end if»

ANNEXES

COMPUTABLES

[DischargeBeforeLeaving] = EnabledDeterminations is true or (WaitedReasonableTime is true and NobodyReadyToDetermine is true)

[Para2] = PersonInvolvedInAccident is true and RoadTrafficAccident is true and (LeftAfterWaitingPeriod is true or LeftJustifiedOrExcused is true) and FailsToEnableRetrospectively is true

[Para1] = PersonInvolvedInAccident is true and RoadTrafficAccident is true and LeavesAccidentSite is true and not DischargeBeforeLeaving

[LeavingSceneOfAccident] = Para1 is true or Para2 is true

ID	KIND	ACTOR	VERB / PREDICATE	BODY
LSA-R01	CONDITION	None		PersonInvolvedInAccident is true
LSA-R02	CONDITION	None		RoadTrafficAccident is true
LSA-R03	ACT	Actor		LeavesAccidentSite is true
LSA-R04	ACT	Actor		EnabledDeterminations is true
LSA-R05	ACT	Actor		WaitedReasonableTime is true
LSA-R06	CONDITION	None		NobodyReadyToDetermine is true
LSA-R07	ACT	Actor		LeftAfterWaitingPeriod is true
LSA-R08	ACT	Actor		LeftJustifiedOrExcused is true
LSA-R09	ACT	Actor		FailsToEnableRetrospectively is true
LSA-P0	PROHIBITION	Actor	not realise	not LeavingSceneOfAccident

TATBESTAND DISSECTED TO THE MERKMAL				
SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
A person involved in an accident	Tätersubjekt	{Actor} · {PersonInvolvedInAccident}	LSA-R01	is true
an accident in road traffic has occurred	Merkmal	{RoadTrafficAccident}	LSA-R02	is true
{Actor} leaves the accident site	Merkmal	{LeavesAccidentSite}	LSA-R03	is true
{Actor} has enabled the determinations before leaving	Merkmal	{EnabledDeterminations}	LSA-R04	is true
{Actor} has waited a time reasonable in the circumstances	Merkmal	{WaitedReasonableTime}	LSA-R05	is true

nobody was ready to make the determinations	Merkmal	{NobodyReadyToDetermine}	LSA-R06	is true
{Actor} left the accident site after expiry of the waiting period	Merkmal	{LeftAfterWaitingPeriod}	LSA-R07	is true
{Actor} left the accident site excusably	Merkmal	{LeftJustifiedOrExcused}	LSA-R08	is true
{Actor} fails to enable the determinations retrospectively without delay	Merkmal	{FailsToEnableRetrospectively}	LSA-R09	is true
(3) retrospective-compliance specification; (4) mitigation; (5) involved-person definition	compliance spec / grading / definition	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{EnabledDeterminations}	Boolean	true / false / unknown	Session	{Actor} has enabled the determinations before leaving
{FailsToEnableRetrospectively}	Boolean	true / false / unknown	Session	{Actor} fails to enable the determinations retrospectively without delay
{LeavesAccidentSite}	Boolean	true / false / unknown	Session	{Actor} leaves the accident site
{LeftAfterWaitingPeriod}	Boolean	true / false / unknown	Session	{Actor} left the accident site after expiry of the waiting period
{LeftJustifiedOrExcused}	Boolean	true / false / unknown	Session	{Actor} left the accident site excusably
{NobodyReadyToDetermine}	Boolean	true / false / unknown	Session	nobody was ready to make the determinations
{PersonInvolvedInAccident}	Boolean	true / false / unknown	Session	{Actor} is a person involved in the accident
{RoadTrafficAccident}	Boolean	true / false / unknown	Session	an accident in road traffic has occurred
{WaitedReasonableTime}	Boolean	true / false / unknown	Session	{Actor} has waited a time reasonable in the circumstances

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} is a person involved in the accident and an accident in road traffic has occurred and {Actor} leaves the accident site and not DischargeBeforeLeaving) or ({Actor} is a person involved in the accident and an accident in road traffic has occurred and {Actor} left the accident site after expiry of the waiting period or {Actor} left the accident site excusably) and {Actor} fails to enable the determinations retrospectively without delay).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[DischargeBeforeLeaving]	EnabledDeterminations, WaitedReasonableTime, NobodyReadyToDetermine	false	Recomputes when any input changes; propagates into the composite.
[Para2]	PersonInvolvedInAccident, RoadTrafficAccident, LeftAfterWaitingPeriod, LeftJustifiedOrExcused, FailsToEnableRetrospectively	false	Recomputes when any input changes; propagates into the composite.
[Para1]	PersonInvolvedInAccident, RoadTrafficAccident, LeavesAccidentSite, DischargeBeforeLeaving	false	Recomputes when any input changes; propagates into the composite.
[LeavingSceneOfAccident]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (LSA-P0)	[LeavingSceneOfAccident]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- {Actor}
- {EnabledDeterminations}
- {FailsToEnableRetrospectively}
- {LeavesAccidentSite}
- {LeftAfterWaitingPeriod}
- {LeftJustifiedOrExcused}
- {NobodyReadyToDetermine}
- {PersonInvolvedInAccident}
- {RoadTrafficAccident}
- {WaitedReasonableTime}

↓

PHASE 2: evaluate act / intermediate computables

- [DischargeBeforeLeaving] = EnabledDeterminations is true or (WaitedReasonableTime is true and NobodyReadyToDetermine is true)
- [Para2] = PersonInvolvedInAccident is true and RoadTrafficAccident is true and (LeftAfterWaitingPeriod is true or LeftJustifiedOrExcused is true) and FailsToEnableRetrospectively is true
- [Para1] = PersonInvolvedInAccident is true and RoadTrafficAccident is true and LeavesAccidentSite is true and not DischargeBeforeLeaving

↓

PHASE 3: evaluate the objective conditions

- [LeavingSceneOfAccident] = Para1 is true or Para2 is true

↓

VERDICT (PrimeRule)

- [LeavingSceneOfAccident] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- [LeavingSceneOfAccident] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [LeavingSceneOfAccident] depends on [DischargeBeforeLeaving], [Para2], [Para1]; none refer back to [LeavingSceneOfAccident]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{EnabledDeterminations}	Element/Datum: {Actor} has enabled the determinations before leaving.?	Boolean
Q3	Session	{FailsToEnableRetrospectively}	Element/Datum: {Actor} fails to enable the determinations retrospectively without delay.?	Boolean
Q4	Session	{LeavesAccidentSite}	Element/Datum: {Actor} leaves the accident site.?	Boolean
Q5	Session	{LeftAfterWaitingPeriod}	Element/Datum: {Actor} left the accident site after expiry of the waiting period.?	Boolean
Q6	Session	{LeftJustifiedOrExcused}	Element/Datum: {Actor} left the accident site excusably.?	Boolean
Q7	Session	{NobodyReadyToDetermine}	Element/Datum: nobody was ready to make the determinations.?	Boolean
Q8	Session	{PersonInvolvedInAccident}	Element/Datum: {Actor} is a person involved in the accident.?	Boolean
Q9	Session	{RoadTrafficAccident}	Element/Datum: an accident in road traffic has occurred.?	Boolean
Q10	Session	{WaitedReasonableTime}	Element/Datum: {Actor} has waited a time reasonable in the circumstances.?	Boolean

FLAGS

SCOPE Paragraphs 1 and 2. Struck per the marked-up source: (1)'s penalty, (2)'s penalty head, (3), (4) and (5).

NEGATIVE LEGS (PARAGRAPH 1) “bevor er ... ermöglicht hat oder ... gewartet hat” encodes as the negation of the discharge disjunction: leaving realises the offence only where neither discharge route was completed; carried as not **[DischargeBeforeLeaving]**.

DEFINITION STRUCK (RECORDED) (5)'s Unfallbeteiligter definition is struck, the opposite treatment to §127(2) and §129(2); **{PersonInvolvedInAccident}** therefore stays an input predicate. Followed as marked and recorded as an editorial decision.

COMPLIANCE SPECIFICATION STRUCK (RECORDED) (3)'s retrospective-compliance specification is struck; what satisfies **{FailsToEnableRetrospectively}** being false resolves on the general wording of (2).

TREATMENT §142 is Operomise-tagged.

§153 · False unsworn testimony

FalseUnswornTestimony · provenance StGB 153 · whole encoded; penalty struck; §157 exception consumed

SOURCE (ENGLISH, UNOFFICIAL)

Any person who, before a court or before another body competent for the sworn examination of witnesses or experts, testifies falsely without oath as a witness or expert shall be punished with imprisonment for a term of three months to five years.

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if FalseUnswornTestimony is true»{Actor} who, **«if {BeforeCourt} is true»before** a court **«end if» «if {BeforeCompetentBody} is true»or** before another body competent for the sworn examination of witnesses or experts **«end if», «if {TestifiesFalsely} is true»testifies falsely «end if» «if {WithoutOath} is true»without oath «end if» «if {AsWitness} is true»as a witness «end if» «if {AsExpert} is true»or expert «end if» «if [TestimonyInDistress] is false»(except where the Section 157 exception holds) **«end if»** ~~shall be punished with imprisonment for a term of three months to five years.~~**«end if»****

ANNEXES

COMPUTABLES

[Capacity] = AsWitness is true or AsExpert is true

[Forum] = BeforeCourt is true or BeforeCompetentBody is true

[FalseUnswornTestimony] = TestifiesFalsely is true and WithoutOath is true and Capacity is true and Forum is true and not TestimonyInDistress

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
FUT-R01	ACT	Actor		TestifiesFalsely is true
FUT-R02	CONDITION	None		WithoutOath is true
FUT-R03	CONDITION	None		AsWitness is true
FUT-R04	CONDITION	None		AsExpert is true
FUT-R05	CONDITION	None		BeforeCourt is true
FUT-R06	CONDITION	None		BeforeCompetentBody is true
FUT-R00	PROHIBITION	None	exception (cross-scope): the offence is excluded where the Section 157 testimony-in-distress exception holds; resolves by name against [TestimonyInDistress] of the Section 157 scope	not TestimonyInDistress
FUT-P0	PROHIBITION	Actor	not realise	not FalseUnswornTestimony

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} testifies falsely	Merkmal	{TestifiesFalsely}	FUT-R01	is true

the testimony is given without oath	Merkmal	{WithoutOath}	FUT-R02	is true
{Actor} acts as a witness	Merkmal	{AsWitness}	FUT-R03	is true
{Actor} acts as an expert	Merkmal	{AsExpert}	FUT-R04	is true
before a court	Merkmal	{BeforeCourt}	FUT-R05	is true
before another body competent for sworn examination	Merkmal	{BeforeCompetentBody}	FUT-R06	is true
the Section 157 exception	exception (cross-scope)	[TestimonyInDistress]	FUT-R00	is false
penalty	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{AsExpert}	Boolean	true / false / unknown	Session	{Actor} acts as an expert
{AsWitness}	Boolean	true / false / unknown	Session	{Actor} acts as a witness
{BeforeCompetentBody}	Boolean	true / false / unknown	Session	before another body competent for sworn examination
{BeforeCourt}	Boolean	true / false / unknown	Session	before a court
{TestifiesFalsely}	Boolean	true / false / unknown	Session	{Actor} testifies falsely
{TestimonyInDistress}	Boolean	true / false / unknown	Session	the Section 157 testimony-in-distress exception holds
{WithoutOath}	Boolean	true / false / unknown	Session	the testimony is given without oath

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} testifies falsely and the testimony is given without oath and ({Actor} acts as a witness or {Actor} acts as an expert) and (before a court or before another body competent for sworn examination) and not TestimonyInDistress.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Capacity]	AsWitness, AsExpert	false	Recomputes when any input changes; propagates into the composite.
[Forum]	BeforeCourt, BeforeCompetentBody	false	Recomputes when any input changes; propagates into the composite.
[FalseUnswornTestimony]	TestifiesFalsely, WithoutOath, Capacity, Forum, TestimonyInDistress	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (FUT-P0)	[FalseUnswornTestimony]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {AsExpert}
- └ {AsWitness}
- └ {BeforeCompetentBody}
- └ {BeforeCourt}
- └ {TestifiesFalsely}
- └ {TestimonyInDistress}
- └ {WithoutOath}

↓

PHASE 2: evaluate act / intermediate computables

- └ [Capacity] = AsWitness is true or AsExpert is true
- └ [Forum] = BeforeCourt is true or BeforeCompetentBody is true

↓

PHASE 3: evaluate the objective conditions

- └ [FalseUnswornTestimony] = TestifiesFalsely is true and WithoutOath is true and Capacity is true and Forum is true and not TestimonyInDistress

↓

VERDICT (PrimeRule)

- └ [FalseUnswornTestimony] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [FalseUnswornTestimony] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [FalseUnswornTestimony] depends on [Capacity], [Forum]; none refer back to [FalseUnswornTestimony]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{AsExpert}	Element/Datum: {Actor} acts as an expert.?	Boolean
Q3	Session	{AsWitness}	Element/Datum: {Actor} acts as a witness.?	Boolean
Q4	Session	{BeforeCompetentBody}	Element/Datum: before another body competent for sworn examination.?	Boolean
Q5	Session	{BeforeCourt}	Element/Datum: before a court.?	Boolean
Q6	Session	{TestifiesFalsely}	Element/Datum: {Actor} testifies falsely.?	Boolean

Q7	Session	<code>{TestimonyInDistress}</code>	Element/Datum: the Section 157 testimony-in-distress exception holds.?	Boolean
Q8	Session	<code>{WithoutOath}</code>	Element/Datum: the testimony is given without oath.?	Boolean

FLAGS

- SCOPE**
The single sentence; only the penalty struck. Forum disjunction, capacity disjunction, the false-testimony conduct and the without-oath qualifier.
- SECTION 157 EXCEPTION**
Per the §157 transformation (mitigation machinery struck, “ausser” inserted), the testimony-in-distress circumstance operates as an exception to this offence; encoded as the separate negative leg not `[TestimonyInDistress]`, resolving by name against the §157 scope in this document, rule FUT-R80, never inside the live legs.
- TREATMENT**
§153 is Operomise-tagged; §154 perjury is Excluded, so the §157 exception's perjury limb has no in-corpus consumer.

§157 · Testimony in distress (exception scope)

TestimonyInDistress · provenance StGB 157 · exception authored from the live remainder; mitigation machinery and (2) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) Where a witness or expert has incurred guilt of perjury or of false unsworn testimony, the court may, in its discretion, mitigate the penalty (Section 49(2)) and, in the case of unsworn testimony, may also dispense with punishment entirely, where [live remainder, with “ausser” inserted:] except the offender told the untruth in order to avert, from a relative or from themselves, the danger of being punished or of being subjected to a custodial measure of reform and prevention. (2) The court may also mitigate the penalty in its discretion (Section 49(2)) or dispense with punishment entirely where a person not yet competent to take an oath has testified falsely without oath.	<code>«if TestimonyInDistress is true»</code>(1) Where a witness or expert has incurred guilt of perjury or of false unsworn testimony, the court may, in its discretion, mitigate the penalty (Section 49(2)) and, in the case of unsworn testimony, may also dispense with punishment entirely, where except <code>«if {ToldUntruth} is true»{Actor}</code> told the untruth <code>«end if</code> in order to avert, <code>«if {ToAvertDangerFromRelative} is true»</code>from a relative <code>«end if» «if {ToAvertDangerFromSelf} is true»</code>or from <code>{Actor}</code> <code>«end if»</code>, <code>«if {DangerOfPunishment} is true»</code>the danger of being punished <code>«end if» «if {DangerOfCustodialMeasure} is true»</code>or of being subjected to a custodial measure of reform and prevention <code>«end if»</code>. (2) The court may also mitigate the penalty in its discretion (Section 49(2)) or dispense with punishment entirely where a person not yet competent to take an oath has testified falsely without oath.<code>«end if»</code>

ANNEXES

COMPUTABLES

<code>[AversionPurpose]</code> = <code>ToAvertDangerFromRelative</code> is true or <code>ToAvertDangerFromSelf</code> is true <code>[AvertedDanger]</code> = <code>DangerOfPunishment</code> is true or <code>DangerOfCustodialMeasure</code> is true <code>[TestimonyInDistress]</code> = <code>ToldUntruth</code> is true and <code>AversionPurpose</code> is true and <code>AvertedDanger</code> is true
--

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
TID-R01	ACT	Actor		<code>ToldUntruth</code> is true
TID-R02	ACT	Actor		<code>ToAvertDangerFromRelative</code> is true
TID-R03	ACT	Actor		<code>ToAvertDangerFromSelf</code> is true
TID-R04	CONDITION	None		<code>DangerOfPunishment</code> is true
TID-R05	CONDITION	None		<code>DangerOfCustodialMeasure</code> is true
TID-R80	CONDITION	None	exception (authored): per the marked-up source, the mitigation machinery of Section 157 is struck and the word “ausser” (except) is inserted before the live remainder, converting judicial sentencing discretion into an exception to the testimony offences; [TestimonyInDistress] is consumed by name as a negative leg by Section 153 in this document; Section 154 perjury stands outside the corpus	<code>TestimonyInDistress</code> is true
TID-P0	PROHIBITION	Actor	not realise	not <code>TestimonyInDistress</code>

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
the offender	Tätersubjekt	<code>{Actor}</code>	–	in scope
<code>{Actor}</code> told the untruth	Merkmal	<code>{ToldUntruth}</code>	TID-R01	is true
<code>{Actor}</code> acted in order to avert the danger from a relative	Merkmal	<code>{ToAvertDangerFromRelative}</code>	TID-R02	is true
<code>{Actor}</code> acted in order to avert the danger from <code>{Actor}</code>	Merkmal	<code>{ToAvertDangerFromSelf}</code>	TID-R03	is true
the danger of being punished	Merkmal	<code>{DangerOfPunishment}</code>	TID-R04	is true
the danger of being subjected to a custodial measure	Merkmal	<code>{DangerOfCustodialMeasure}</code>	TID-R05	is true
the mitigation machinery of (1); (2) oath-incompetent minors	sentencing discretion	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
<code>{Actor}</code>	Reference	–	Session	any person (the actor)

<code>{DangerOfCustodialMeasure}</code>	Boolean	true / false / unknown	Session	the danger of being subjected to a custodial measure
<code>{DangerOfPunishment}</code>	Boolean	true / false / unknown	Session	the danger of being punished
<code>{ToAvertDangerFromRelative}</code>	Boolean	true / false / unknown	Session	{Actor} acted in order to avert the danger from a relative
<code>{ToAvertDangerFromSelf}</code>	Boolean	true / false / unknown	Session	{Actor} acted in order to avert the danger from {Actor}
<code>{ToldUntruth}</code>	Boolean	true / false / unknown	Session	{Actor} told the untruth

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} told the untruth and ({Actor} acted in order to avert the danger from a relative or {Actor} acted in order to avert the danger from {Actor}) and (the danger of being punished or the danger of being subjected to a custodial measure).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[AversionPurpose]</code>	<code>ToAvertDangerFromRelative</code> , <code>ToAvertDangerFromSelf</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[AvertedDanger]</code>	<code>DangerOfPunishment</code> , <code>DangerOfCustodialMeasure</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[TestimonyInDistress]</code>	<code>ToldUntruth</code> , <code>AversionPurpose</code> , <code>AvertedDanger</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (TID-P0)	<code>[TestimonyInDistress]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {DangerOfCustodialMeasure}
- └ {DangerOfPunishment}
- └ {ToAvertDangerFromRelative}
- └ {ToAvertDangerFromSelf}
- └ {ToldUntruth}

↓

PHASE 2: evaluate act / intermediate computables

- └ `[AversionPurpose]` = `ToAvertDangerFromRelative` is true or `ToAvertDangerFromSelf` is true
- └ `[AvertedDanger]` = `DangerOfPunishment` is true or `DangerOfCustodialMeasure` is true

↓

PHASE 3: evaluate the objective conditions

- └ `[TestimonyInDistress]` = `ToldUntruth` is true and `AversionPurpose` is true and `AvertedDanger` is true

↓

VERDICT (PrimeRule)

- └ `[TestimonyInDistress]` is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ `[TestimonyInDistress]` is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- `[TestimonyInDistress]` depends on `[AversionPurpose]`, `[AvertedDanger]`; none refer back to `[TestimonyInDistress]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	<code>{Actor}</code>	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	<code>{DangerOfCustodialMeasure}</code>	Element/Datum: the danger of being subjected to a custodial measure.?	Boolean
Q3	Session	<code>{DangerOfPunishment}</code>	Element/Datum: the danger of being punished.?	Boolean
Q4	Session	<code>{ToAvertDangerFromRelative}</code>	Element/Datum: {Actor} acted in order to avert the danger from a relative.?	Boolean
Q5	Session	<code>{ToAvertDangerFromSelf}</code>	Element/Datum: {Actor} acted in order to avert the danger from {Actor}.?	Boolean
Q6	Session	<code>{ToldUntruth}</code>	Element/Datum: {Actor} told the untruth.?	Boolean

FLAGS

TRANSFORMATION (PROMINENT) §157 as enacted is a sentencing-discretion rule: the court MAY mitigate or dispense with punishment. The marked-up source strikes that machinery whole and inserts “ausser” before the live remainder, converting it into an exception: the testimony offence is excluded where the untruth was told to avert from a relative or from the offender the danger of punishment or a custodial measure. The operome follows the markup; this is a normative transformation of the provision, not a translation choice, and is recorded here for confirmation.

EXCEPTION SCOPE, SEPARATE RULE Encoded as the exception composite `[TestimonyInDistress]`, rule TID-R80, consumed by name as a negative leg by §153 in this document, per the standing rule that exemptions are separate rules and never sit inside legs.

PERJURY LIMB The struck head names perjury (§154) alongside unsworn testimony; §154 is Excluded in the Treatment column, so the exception has no in-corpus perjury consumer.

TREATMENT §157 is Operomise-tagged; §§154 to 156 and 158 are Excluded.

(1) Any person who induces another to take a false oath shall be punished with imprisonment for up to two years or a fine; any person who induces another to make a false affirmation in lieu of an oath or a false unsworn statement shall be punished with imprisonment for up to six months or a fine of up to one hundred and eighty daily rates. (2) An attempt is punishable.

«if InducementToFalseStatement is true»(1) {Actor} who «if {InducesAnother} is true»induces another «end if» «if {ToTakeFalseOath} is true»to take a false oath «end if» shall be punished with imprisonment for up to two years or a fine; any person who induces another to make a false affirmation in lieu of an oath or a false unsworn statement shall be punished with imprisonment for up to six months or a fine of up to one hundred and eighty daily rates. (2) An attempt is punishable.«end if»

ANNEXES

COMPUTABLES

[InducementToFalseStatement] = InducesAnother is true and ToTakeFalseOath is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
ITF-R01	ACT	Actor		InducesAnother is true
ITF-R02	CONDITION	None		ToTakeFalseOath is true
ITF-P0	PROHIBITION	Actor	not realise	not InducementToFalseStatement

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} induces another person	Merkmal	{InducesAnother}	ITF-R01	is true
to the taking of a false oath	Merkmal	{ToTakeFalseOath}	ITF-R02	is true
the second limb (false affirmation in lieu of oath; false unsworn statement); (2) attempt	conduct variant / attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{InducesAnother}	Boolean	true / false / unknown	Session	{Actor} induces another person
{ToTakeFalseOath}	Boolean	true / false / unknown	Session	to the taking of a false oath

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} induces another person and to the taking of a false oath.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[InducementToFalseStatement]	InducesAnother, ToTakeFalseOath	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (ITF-P0)	[InducementToFalseStatement]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {InducesAnother}
- └ {ToTakeFalseOath}

↓

PHASE 2: evaluate act / intermediate computables

↓

PHASE 3: evaluate the objective conditions

- └ [InducementToFalseStatement] = InducesAnother is true and ToTakeFalseOath is true

↓

VERDICT (PrimeRule)

- └ [InducementToFalseStatement] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [InducementToFalseStatement] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [InducementToFalseStatement] depends on ; none refer back to [InducementToFalseStatement]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{InducesAnother}	Element/Datum: {Actor} induces another person.?	Boolean
Q3	Session	{ToTakeFalseOath}	Element/Datum: to the taking of a false oath.?	Boolean

FLAGS

SCOPE The first limb of (1) only: inducing another to take a false oath. The second limb (inducement to a false affirmation in lieu of an oath or a false unsworn statement) sits wholly inside the struck penalty run and is struck with it; (2) struck.

SECOND LIMB STRUCK (RECORDED) The strike runs from the first penalty through the entire second limb including its own penalty; followed as marked and recorded as an editorial decision. If the second limb was meant to stay live, the strike boundary needs moving in the source document.

FALSE OATH REFERENCE The false oath is the §154 conduct; §154 is Excluded, so whether the induced oath is false resolves on the general wording as an input.

TREATMENT §160 is Operomise-tagged; §§159, 161 to 163 are Excluded.